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EXAMINING CIVIL RIGHTS LITIGATION REFORM, PART 2: STATE AND LOCAL GOVERNMENT EMPLOYER LIABILITY

HEARING

BEFORE THE

SUBCOMMITTEE ON THE CONSTITUTION, CIVIL RIGHTS, AND CIVIL LIBERTIES

OF THE

COMMITTEE ON THE JUDICIARY

U.S. HOUSE OF REPRESENTATIVES

ONE HUNDRED SEVENTEENTH CONGRESS

SECOND SESSION

THURSDAY, JUNE 9, 2022

Serial No. 117–70

Printed for the use of the Committee on the Judiciary



Available via: *http://judiciary.house.gov*

U.S. GOVERNMENT PUBLISHING OFFICE

48–305 WASHINGTON : 2022

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EXAMINING CIVIL RIGHTS LITIGATION REFORM, PART 2: STATE AND LOCAL GOVERNMENT EMPLOYER LIABILITY

Thursday, June 9, 2022

U.S. HOUSE OF REPRESENTATIVES

SUBCOMMITTEE ON THE CONSTITUTION, CIVIL RIGHTS, AND CIVIL LIBERTIES

COMMITTEE ON THE JUDICIARY

Washington, DC

The Subcommittee met, pursuant to call, at 9:32 a.m., in Room 2141, Rayburn House Office Building, Hon. Steve Cohen [Chair of the Subcommittee] presiding.

Members present: Representatives Cohen, Ross, Garcia, Johnson of Louisiana, Fischbach, and Owens.

Staff present: John Doty, Senior Advisor and Deputy Staff Director; Moh Sharma, Director of Member Services and Outreach & Policy Advisor; Brady Young, Parliamentarian; Cierra Fontenot, Chief Clerk; Gabriel Barnett, Staff Assistant; James Park, Chief Counsel for Constitution; Matt Morgan, Counsel for Constitution; Will Emmons, Professional Staff Member/Legislative Aide for Constitution; Betsy Ferguson, Minority Senior Counsel; Caroline Nabity, Minority Senior Counsel; Andrea Woodard, Minority Professional Staff Member; and Kiley Bidelman, Minority Clerk.

Mr. COHEN. I will call this meeting to order, Committee on the Judiciary, Subcommittee on the Civil Rights and the Constitution comes to order without objection. The Chair is authorized to call a recess at any time that he so desires a recess.

I welcome everyone to today's hearing on Examining Civil Right Litigation Part 2: State and Local government Employer Liability.

The email address to distribute exhibits or whatever, that is—we have provided that for Members. If you would like to submit those, the email address is there, and you know all about that.

All Members or Witnesses, to all those in person, et cetera, turn your microphones off or you have feedback and problems. Un-mute yourself when you seek recognition.

I now recognize myself for an opening statement.

Today's hearing is the second in a series of hearing before the Subcommittee examining civil rights litigation reform and follows up on our first hearing on qualified immunity.

At our previous hearing Members and Witnesses expressed potential support for imposing respondeat superior or vicarious liabil-

ity of municipal employers in cases filed under 42 U.S.C. 1983, the statute that creates a right of action against State and local officials and local governments for violations of constitutional or other Federal rights.

For instance, Judge Jon O. Newman of the Second Circuit testified this could be a better means than individual officer liability, police officer, for ensuring that victims of constitutional or civil rights violations be compensated. Our hearing today will examine that idea in more detail.

Respondeat superior has routinely applied common-law doctrine under which employers may be held liable for their employees' torts committed while acting with the scope of their employment.

Over 40 years ago in *Monell* v. *Department of Social Services of the City of New York*, an employment discrimination case brought by pregnant municipal employees against the city of New York, the Supreme Court held that under section 1983, local governing bodies could be held directly liable for monetary, declaratory, and injunctive relief in cases alleging that their employees committed a constitutional violation against a third party.

In reaching its holding in *Monell*, however, the Supreme Court articulated the view that while Congress had intended to include municipalities under the statute's ambit, it specifically excluded claims based on respondeat superior theory. Instead, *Monell* held that local government employers were liable for the employees' deprivation of a constitutional right under 1983 where the employees' alleged deprivation implements or executes a policy, ordinance, regulation, decision, or custom adopted by that body's officers.

Under Supreme Court decisions applying *Monell* and its local progeny, local governments have been subject to such direct liability, but only under narrow and difficult-to-prove circumstances. Moreover, the case in this area has become case law, increasingly confusing for both plaintiffs and defendants.

As Justice Breyer has observed, the Supreme Court's basic efforts to distinguish between vicarious liability and liability derived from the policy or custom has produced a body of law that is neither readily understandable, nor easy to apply.

When it comes to State liability for monetary relief under section 1983, the story is even simpler. They are immune from such suits. In the Court's view, Congress did not clearly abrogate State sovereign immunity in the language of section 1983. Therefore, according to the Court, the 11th Amendment, which prohibits federal courts from hearing certain kinds of lawsuits against States, bars such lawsuits.

For those of you who are lawyers, you may be wondering about the possibility of bringing a section 1983 claim to State court where the 11th Amendment does not apply, but there too the Supreme Court has foreclosed suits for monetary relief, holding that Congress excluded States from the statute's definition of a person.

It may sound from my description of the current State of the law as though I am blaming the Supreme Court for limiting the ability of victims of constitutional deprivations to seek redress in federal courts, but the truth is the Court is not solely responsible. The Court's decisions over the years have effectively foreclosed or narrowed the ability of victims to hold State and local governments ac-

countable for their employees' constitutional violations under 1983, and it must be acknowledged those decisions rest on the Court's interpretation of the statute rather than on its view of Congress' constitutional authority to legislate in this area.

Like *Monell*, many of the Court's decisions that concern local and State employer liability are not recent. In other words, Congress has long possessed the power to address limitations on 1983 litigation created by the Court, but for decades it has failed to act. Congress in my view has lacked the political will to do the right thing on section 1983.

The public's most recent demands for racial justice and police accountability however have shone a spotlight on these long-standing issues related to local and State employer liability under 1983 and brought renewed urgency for Congress to act.

For example, I have introduced H.R. 1489, the Civil Rights Enhancement and Law Enforcement Accountability Improvement Act, which would amend section 1983 to impose vicarious liability on a municipality for a constitutional violation committed by one of its law enforcement officers. This both gives more likelihood that the plaintiff will get financial remuneration for their loss and that the officer will not be impeded in his efforts to patrol the streets properly for fear of monetary loss in a court himself because his employer would be responsible for that possible tort.

I recognize Members or agents of State and local governments can commit all kinds of constitutional violations outside the policing context, including infringements on the First Amendment and religious freedom rights, for example, and I am open to taking a broader approach to this legislation.

Note last Congress Senator Mike Braun of Indiana, Republican, introduced legislation in part also imposed vicarious liability on municipalities under 1983. I acknowledge differences among our Subcommittee Mmbers on issues surrounding civil rights litigation reform. I was heartened to see at our last meeting perhaps there appeared some level of agreement around issues related to municipal liability under section 1983, particularly Mr. McClintock's response. It is my hope that at today's hearing we will continue to build on this potential consensus and can work together to develop concrete legislative responses that enjoy broad support.

I thank the Witnesses for appearing today and I look forward to their testimony.

I now recognize the Ranking Member of the Committee, the gentleman from the State of Louisiana, where they not only have jambalaya, but they have oil, Mr. Johnson, for his opening statement.

Mr. JOHNSON of Louisiana. An exceptional culture. Thank you, Mr. Chair.

I want to thank our Witnesses for being here this morning and appearing by video, those who are not here in person.

As noted, today's gathering is the Committee's second hearing regarding civil rights litigation reform. Today we will focus on State and local government liability for the actions of their employees. I personally spent nearly two decades in Federal courts litigating these cases before I got to Congress, routinely litigated cases under section 1983 of the Civil Rights Act for the violation of persons' re-

ligious freedom and free speech rights, so this issue is of great interest to me.

Currently, under section 1983, of course people can sue the government when one of its employees violates their constitutional rights. However, under section 1983 litigation, it is subject to certain restraints such as sovereign immunity, qualified immunity, and the *Monell* doctrine.

As noted, the *Monell* doctrine permits injured parties to sue local governments for monetary, declaratory, or injunctive relief under section 1983 only if, "the action that is alleged to be unconstitutional implements or executes a policy, statement, ordinance, regulation, or decision officially adopted and promulgated by the body's officers." Thus, the *Monell* doctrine does not provide complete liability protection for local governments if their employees engage in certain misconduct.

We most often discuss the *Monell* doctrine as it relates to police misconduct, and I think that is where the focus is. Over the past couple of years some scholars have advocated for certain police reform proposals such as getting rid of qualified immunity for law enforcement officers. Additionally, some have argued for the eradication of the *Monell* doctrine thereby making local governments and municipalities vicariously liable for actions or omissions of their employees when the employee is acting within the scope of his or her employment.

However, as the Committee examines the *Monell* doctrine today, I hope that we can have a rational conversation about the potential ramifications of removing this doctrine. For example, we need to seriously consider how moving to a vicarious liability standard may financially impact smaller localities and municipalities. We also need to consider what impacts such reform might have on officer behavior. We ought to be very clear; we should be, there is no room in our society for truly bad actors that engage in misconduct while on the job, but conversations surrounding police reform really need to be thoughtful and balanced and measured. You have to think about all the unintended consequences that may result.

We have many, many brave men and women who put on uniforms every day to serve and protect the great citizens of this country, and they are often charged with making tough split-second decisions and they must do this job in an environment now that is increasingly hostile to law enforcement officers.

Democrat calls to defund the police, a media that increasingly portrays law enforcement in a negative light and radical District Attorneys who refuse to prosecute criminals while crime is surging in major U.S. cities, all that make it all the more necessary for us to ensure that law enforcement officers are equipped with all the tools they need to do their jobs safely and effectively.

I look forward to hearing from our Witnesses today and I yield back.

Mr. COHEN. Thank you, Mr. Johnson.

At this point we normally recognize our Chair and our Ranking Member. Neither which are here and I don't think either have a statement to give us, so we will go straight to the Witnesses.

We welcome our Witnesses, thank them for participating, and I will introduce each of you before your testimony. We have got a

five-minute rule. There is—four minutes you have got a green light; one minute you have got a yellow light; red light means you are supposed to be finished. You should be. There is something on your computer to show. For people here there is a light somewhere. You will see it, I guess. For the people on Zoom, you will see it on your screen. Should be visible.

You are all under the oath to—or duty to tell the truth. If you don't tell the truth, you could be picked up, taken to the pokey, and put in jail. So, tell the truth.

Our first Witness is Karen Blum, Professor Emerita of Suffolk University Law School. Taught for almost 50 years here on federal procedure, Federal court, civil rights, and police misconduct litigation. Served as faculty member for workshops sponsored by the Federal Judicial Center for Federal judges and Federal magistrate judges, authored numerous articles on section 1983 area, and is co-author of the treatise, "Police Misconduct Law and Litigation." As a professor emerita she continues to engage in 1983 programs throughout the country. J.D. from Suffolk University Law and her L.L.M. from Harvard, B.A. in philosophy from Wells College.

You are recognized for five minutes.

Mr. JOHNSON of Louisiana. Ma'am, you are on mute.

STATEMENT OF KAREN BLUM

Ms. BLUM. There we go. Okay. Well, good morning and thank you for having me, and giving me this opportunity to testify this morning.

I have taught in this area of section 1983 for well over 40 years, close to 50, and primarily in the area of section 1983 litigation with a focus on police misconduct litigation. One of my earliest law review articles was on the Supreme Court's 1978 *Monell* decision. I argued then, and I still believe, that the Court got it wrong when it rejected vicarious liability under section 1983.

There are four points I would like to make this morning with respect to this topic, and I thank you for the opportunity to do so.

First point: Legislative history does not support the conclusion that Congress rejected vicarious liability for local government entities under section 1983. Any argument against vicarious liability based on the congressional rejection of the so-called Sherman Amendment in 1871 is misplaced and simply wrong. A reading of the proposed amendment reveals that the proposal would have made local governments strictly liable for private acts of violence committed within their borders. This was not a form of vicarious liability based on conduct of government employees acting under color of State law, employees over whom the government exercises control.

Second point: Scholars and judges, including Supreme Court justices, have questioned the soundness of *Monell*'s rejection of vicarious liability. In *Pembaur*, in 1986, Justice Stevens criticized the rejection of respondeat superior liability as inconsistent with the legislative history of section 1983.

In *Bryan County* v. *Brown*, in 1997, Justice Breyer, joined by others, called for a reexamination of the legal soundness of the distinction drawn by the Supreme Court between direct and vicarious liability suggesting that this aspect of *Monell* should be revisited es-

pecially in light of the fact that virtually all States have indemnification statutes that come into play when government employees are sued for conduct performed under color of State law.

As Chair Cohen mentioned, Judge Jon O. Newman of the Second Circuit has long been an advocate of employer liability in section 1983 cases. His testimony is included in the record for the hearings conducted on qualified immunity before the Subcommittee on March 31, 2022.

As David Rudovsky, a well-respected scholar and civil rights lawyer has put it,

> The incorporation of respondeat superior as a basis of relief against the government entity in one elegant move removes all of the difficult and irrelevant issues regarding municipal policy, and practice, and qualified immunity.

Third point: As a practical matter *Monell* claims are difficult to plead and prove as well as expensive and time-consuming to litigate for both plaintiffs and defendants. The area of municipal or entity liability has become in the words of Justice Breyer, "a highly complex body of interpretive law." Municipal liability claims have become procedurally more difficult for plaintiffs to assert since the Court's imposition of a more stringent pleading standard in *Twombly* and *Iqbal*, and even more challenging to ultimately prove after the Court's 2011 decision in *Connick* v. *Thompson*.

The bottom line is that litigating *Monell* claims is burdensome, expensive, and time-consuming for plaintiffs, defendants, and the courts.

Fourth point: Imposing vicarious liability on governmental entities under section 1983 would not open the flood gates to litigation or liability. The reality is, as Professor Joanna Schwartz has documented, local and State governments currently indemnify their employees when there is a finding of individual liability. Individual defendants rarely if ever pay anything out of pocket for judgments rendered against them in these civil rights suits.

Fifth point: Very important to remember is the fact that there is no liability on the part of anyone unless the plaintiff carries the burden of making out an underlying constitutional violation, and the standards the Court has established for various constitutional violations are rigorous and difficult to meet. Unlike State law claims, gross negligence, simple negligence will never suffice to prevail on a constitutional claim. The end. Thank you.

[The prepared statement of Ms. Blum follows:]

Written Testimony of Karen M. Blum

Professor Emerita and Research Professor of Law
Suffolk University Law School, Boston, MA

Hearing on Examining Civil Rights Litigation Reform, Part II:
Vicarious Liability of Municipal/State Employers under Section 1983

Before the Committee on the Judiciary
Subcommittee on the Constitution and Civil Justice
United States House of Representatives

June 9, 2022

Introduction

Good morning Chair Nadler, Chairman Cohen, Vice Chair Ross, Ranking Member Johnson, and members of the Subcommittee. My name is Karen Blum and I am a Professor Emerita at Suffolk University Law School in Boston, where I taught for over forty years in the areas of Civil Procedure, Federal Courts and Section 1983, with a focus on police misconduct litigation. Since my retirement from full-time teaching in 2017, I have continued to teach my course on police misconduct litigation under Section 1983 during intersession and will be teaching a module of a course on Race and the Law in the fall of 2022. For over 30 years, I have been involved in the training and education of federal district court judges and federal magistrate judges through programs conducted by the Federal Judicial Center. Over the years, I have done countless programs for practicing attorneys on both the Plaintiff and Defense side of Section 1983 cases. Thank you for affording me the opportunity to provide testimony on this important and timely issue of government liability under Section 1983. One of my earliest law review articles was on the Supreme Court's *Monell* decision. [1] I argued then and continue to believe that the Court got it wrong when it rejected vicarious liability under Section 1983. There are four points I would like to make with respect this topic:

I. Legislative History does not Support the Conclusion that Congress Rejected Vicarious Liability for Local Government Entities under Section 1983

- In *Monroe v. Pape*,[2] the Court held that local governments were not "persons" who could be sued at all under Section 1983. This total immunity for local governments was based on Congressional rejection of the only form of municipal liability legislatively proposed at the time, the Sherman amendment to the Civil Rights Act of 1871 (Section 1983).
- When the Court in *Monell* self-corrected the error made by the *Monroe* Court, it explained that the rejection of the Sherman amendment constituted a rejection of vicarious liability, but did not support immunity from liability when a local government's own acts or omissions directly caused a constitutional violation. Local governments, like other persons

[1] *See generally* Karen M. Blum, FROM *MONROE* TO *MONELL*: DEFINING THE SCOPE OF MUNICIPAL LIABILITY IN FEDERAL COURTS, 51 TEMP. L.Q. 409 (1978)
[2] 365 U.S. 167 (1961), overturned on other grounds by *Monell v. Dept. of Social Services of City of New York*, 436 U.S. 658 (1978).

acting under color of state law, could be held liable for their own constitutional wrongdoing.

- But any argument against vicarious liability based on Congressional rejection of the Sherman amendment is misplaced and simply wrong. A reading of the proposed Sherman Amendment reveals that the proposal would have made local governments strictly liable for *private* acts of violence committed against Blacks within the borders of the governmental entity. This was not vicarious liability based on conduct of government employees acting under color of state law.

II. Scholars and Judges, including Supreme Court Justices, Have Questioned the Soundness of *Monell's* Insistence on the Direct vs. Vicarious Liability Distinction.

- In *Pembaur v. City of Cincinnati*,[3] Justice Stevens criticized the Court's rejection of respondeat superior liability as inconsistent with the legislative history of Section 1983.
- In *Board of County Com'rs of Bryan County, Okl. v. Brown*,[4] Justice Breyer called for a reexamination of "the legal soundness" of the distinction drawn by the Supreme Court between direct and vicarious liability, suggesting that that aspect of *Monell* should be revisited, especially in light of the fact that virtually all states have indemnification statutes that come into play when government employees are sued for conduct performed in the course of their employment.
- Judge Jon O. Newman has long been an advocate of employer liability in Section 1983 cases. His testimony is included in the record for the hearings conducted on qualified immunity before this subcommittee on March 31, 2022.[5]

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[3] 475 U.S. 469, 489 n.4 (1986) (Stevens, J., concurring in part and concurring in judgment).
[4] 520 U.S. 397, 430 (1997) (Breyer, J., joined by Stevens, J., and Ginsburg, J., dissenting).
[5] https://docs.house.gov/meetings/JU/JU10/20220331/114567/HHRG-117-JU10-Wstate-NewmanJ-20220331.pdf
See also Vodak v. City of Chicago, 639 F.3d 738, 746 (7th Cir. 2011) ("For reasons based on what scholars agree are historical misreadings (which are not uncommon when judges play historian), … the Supreme Court has held that municipalities are not liable for the torts of their employees under the strict-liability doctrine of respondeat superior, as private employers are."); *Pinter v. City of New York*, 976 F.Supp.2d 539, 551 n.23 (S.D.N.Y. 2013) ("Pinter correctly notes that questions have been raised about the accuracy of *Monell*'s analysis of Section 1983. . . . If it were within the province of a federal district court to question Supreme Court precedent based on indications of dissension, I might be inclined to do so in this case. But this Court's task is to apply Supreme Court and Second Circuit law as it stands. As a result, I am constrained to apply *Monell* and its progeny, although I add my voice to the chorus of those who would encourage the Supreme Court to revisit *Monell*'s analysis.").

- A number of scholars, myself included, when asked what would be at the top of their list to change in the jurisprudence of Section 1983 litigation as it now exists, answered with the adoption of respondeat superior liability. As David Rudovsky, a well-respected scholar and civil rights lawyer, so eloquently put it: The incorporation of respondeat superior as a basis for relief against the governmental entity "in one elegant move removes all of the difficult and irrelevant issues regarding municipal policy and practice and qualified immunity."

III. As a Practical Matter, *Monell* Claims are Difficult to Plead and Prove, as well as Expensive and Time-consuming to Litigate for both Plaintiffs and Defendants.[6]

- The area of municipal or entity liability has become, in the words of Justice Breyer, a "highly complex body of interpretive law,"[7] indeed, a maze that judges and litigants must navigate with careful attention to all the twists and turns.
- Many trees have been destroyed by scholars, myself included, trying to parse and explain the various theories for holding municipalities liable under Section1983,[8] always cautious about crossing the line the Supreme Court has drawn between vicarious and direct liability.[9]
- Municipal liability claims have become procedurally more difficult for plaintiffs to assert since the Court's imposition of a more stringent pleading standard in *Bell Atlantic*

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[6] *See* Karen M. Blum, SECTION 1983 LITIGATION: THE MAZE, THE MUD, AND THE MADNESS, 23 WM. & MARY BILL RTS. J. 913 (2015) [hereinafter, *THE MAZE*]

[7] *Board of County Com'rs of Bryan County, Okl. v. Brown*, 520 U.S. 397, 430 (1997) (Breyer, J., joined by Stevens, J., and Ginsburg, J., dissenting).

[8] The Court has recognized basically four different ways a plaintiff might establish local government liability:

1. Plaintiff may establish that her harm was caused by an application of an officially adopted unconstitutional policy.
2. Plaintiff may establish that her harm was caused by an unconstitutional custom, usage, or practice.
3. Plaintiff may attribute a single unconstitutional decision or act of a final policymaker to the entity, taking caution to distinguish a final policymaker from a final policy-implementing official or even a final decision maker.
4. Plaintiff may establish that a failure to train, supervise, discipline, or adequately screen, while not itself unconstitutional, is deliberately indifferent to and the cause of a constitutional violation by a non-policymaker.

[9] It is also worth noting that courts have mechanically applied the rationale of *Monell* to private corporations like prison management and prison health care corporations sued under Section 1983. *See The Maze*, at 919 n.32.

Corp. v. Twombly[10] and *Ashcroft v. Iqbal*,[11] and even more challenging to ultimately prove after the Court's decision in *Connick v. Thompson*.[12] The bottom line is that litigating *Monell* claims is burdensome, expensive, and time-consuming for Plaintiffs, Defendants,[13] and the courts.

IV. Imposing Vicarious Liability on Governmental Entities under Section 1983 Would Not Open the Floodgates to Litigation or Liability.

- The reality is, as Professor Joanna Schwartz has documented,[14] local and state[15] governments currently are required by state law, or are bound through collective bargaining agreements, to indemnify their employees when civil rights litigation results in a finding of individual liability. Individual officers/officials rarely, if ever, pay anything out of pocket for judgments rendered against them in civil rights suits.
- It's important to realize that there is no liability on the part of anyone unless the Constitution has been violated. The standards the Court has established for various constitutional violations are rigorous and difficult for plaintiffs to make out. Simple, or even gross negligence, will never suffice to prevail on a constitutional claim. Thus, a

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[10] 550 U.S. 544 (2007).
[11] 556 U.S. 662 (2009).
[12] 563 U.S. 51 (2011).
[13] Because of the burdensome discovery involved, defendants often seek and are granted bifurcation of the *Monell* claim, whereby the court stays discovery on the *Monell* claim and requires the Plaintiff to proceed first on the underlying constitutional claim against the individual defendant. The municipality is generally required to agree that if the Plaintiff prevails on the constitutional claim against the individual officer, the entity will indemnify, thus precluding any need to proceed with the *Monell* claim. If the Plaintiff fails to make out a constitutional violation against the individual, most courts would dismiss the claim against the entity as well. *See generally* Colbert, *Bifurcation of Civil Rights Defendants: Undermining* Monell *in Police Brutality Cases*, 44 Hastings L.J. 499 (1993).
[14] Joanna Schwartz, Police Indemnification, 89 N.Y.U. L. REV. 885 (2014).
[15] While the Supreme Court has construed Section 1983 to preclude suits against states by holding that states are not suable "persons" within the meaning of the statute, Will v. Michigan Dep't of State Police, 491 U.S. 58 (1989), Congress can legislatively define the term "person" to include a State. Furthermore, while the Court has held that Congress did not intend to abrogate Eleventh Amendment immunity when it enacted Section 1983, Quern v. Jordan, 440 U.S. 332, 345 (1979), Congress is free to decide otherwise and may validly abrogate Eleventh Amendment immunity pursuant to its Fourteenth Amendment enforcement power. As Justice Scalia noted in United States v. Georgia, 546 U.S. 151 (2006), "[w]hile the Members of this Court have disagreed regarding the scope of Congress's 'prophylactic' enforcement powers under § 5 of the Fourteenth Amendment, . . . no one doubts that § 5 grants Congress the power to 'enforce ... the provisions' of the Amendment by creating private remedies against the States for *actual* violations of those provisions." *Id.* at 158. Thus, to the extent that a plaintiff must make out an "*actual* violation" of the Constitution to be afforded a remedy under Section 1983, Congress may make that remedy available against states.

government entity will be liable only when the plaintiff has carried the burden of making out the underlying constitutional violation.

- It should also be kept in mind that the Supreme Court has held that punitive damages may not be awarded against a government entity.[16] Adopting vicarious liability would not change that holding.

Thank you to the Committee for your attention to this important topic.

[16] *City of Newport v. Fact Concerts*, 453 U.S. 247 (1981).

Ms. Ross [Presiding.]. Well, right on the dot, Professor Blum. You get an A for that.

Ms. BLUM. Thank you.

Ms. ROSS. Our next Witness is Bhavani Raveendran. Did I say that correctly?

She is a partner at Romanucci & Blandin, LLC in Chicago where she concentrates her practice on civil rights litigation under the Civil Rights Act and State court cases of causes of action against governmental employers. During her tenure working on civil rights litigation, she has represented individuals and families in cases regarding the depravation of their constitutional rights, severe injury at the hands of State actors, or the loss of loved ones before juries and appellate courts. She has been instrumental in the representation of her clients in their civil suits including the families of George Floyd, Botham Jean, and Javier Ambler. Ms. Raveendran received her law degree from American University's Washington College of Law and her undergraduate degree in political science from Case Western Reserve University.

Ms. Raveendran, you are recognized for five minutes.

STATEMENT OF BHAVANI RAVEENDRAN

Ms. RAVEENDRAN. Good morning, Ranking Member Johnson, Representative Ross, and Members of the Subcommittee. I'm honored to be here today, and I thank you for your time.

Respondeat superior and *Monell* are two sides of the same coin providing necessary avenues for litigants who have experienced a violation of their civil rights. I'm asking this Subcommittee to consider legislating to add respondeat superior or vicarious liability to this area of litigation while maintaining the *Monell* doctrine.

Respondeat superior attaches when an employee acting within the course of scope of their employment causes harm to another person and the employer is held liable for that conduct. The reasoning is that an employee is acting at the direction of the employer and the employer should share in legal responsibility for harm caused for its benefit. Respondeat superior often applies where an employee's use of force is an expected part of their duties or job description, even if unauthorized such as a bouncer at a bar.

Monell v. *Department of Social Services* held that a governmental employer can be sued directly for unconstitutional policies, practices, or customs that were the moving force behind or caused a constitutional violation under section 1983. *Monell* is an invaluable tool for certain section 1983 claims. For example, where a police department has a long-standing policy that allows for neck restraints on prone subjects which officers are using to engage in excessive deadly force. Another example, where overwhelming heat in a prison due to building conditions causes unconstitutional harm to inmates.

Monell determined that respondeat superior did not apply to section 1983 despite long-standing common-law recognizing its application to municipal corporations' employees. Claimants who cannot meet the burdens of *Monell* do not have a realistic remedy where State law or collective bargaining agreements do not provide for indemnification of governmental actors, as most governmental actors

do not ensure their own work or have sufficient assets to satisfy judgment.

Monell's high standards of proof create a significant burden including finding information before the lawsuit begins to get past pleading standards, extensive discovery, and success in motion practice being dependent on information in the sole control of the defendants.

The numerous obstacles in the path of successfully proving a *Monell* claim become a deterrent to litigants, attorneys, and the public in holding municipal entities accountable for failing to be proactive in policy, discipline, and training. For these reasons, *Monell* is not an adequate substitute for respondeat superior.

The availability of the application of respondeat superior to section 1983 claims would lessen the number of *Monell* claims saving resources for all parties involved. Litigants would be able to choose whether vicarious liability or *Monell* was better suited for the facts of their specific case. For example, in a matter involving a corrections officer who sexually assaults an inmate violating their Eighth Amendment rights, respondeat superior may not apply if it is beyond the scope of employment. However, if the prison had previously overlooked known repeated assaults of inmates and failed to train, discipline, or terminate its employees, *Monell* would be well-suited.

On the other hand, the assessment would differ in a scenario where a well-trained officer with prior—without prior complaints for excessive force discharges a firearm at an unarmed subject during a traffic stop when the subject discloses there is a legal firearm in the vehicle. If the officer acted in violation of the policies and training of the police department, a *Monell* claim may not be applicable, but respondeat superior would likely apply as it was within the scope of employment.

Legislation to include respondeat superior in civil right claims would have many other benefits. Vicarious liability would apply to all municipal actors, not just police officers, ensuring additional protection for governmental employees that private employees enjoy. It would add an additional layer of protection for officers' privacy. Officers would potentially feel supported by their employer's decreasing burnout in smaller jurisdictions where indemnification is not guaranteed. Municipalities would have an added incentive to train officers on policies, root out problematic practices, and terminate problematic officers.

Respondeat superior would also reduce a municipality's costs because attorney fees and costs paid out after a verdict are far more onerous in a *Monell* claim. In jurisdictions where officers are not indemnified there would be protection for officers and an available remedy to litigants allowing for civil rights claims to be litigated wherever they occur, not just where officers are indemnified. In conclusion, the Judiciary Committee and this honorable Subcommittee should consider legislation that would codify respondeat superior while preserving *Monell* to be utilized when the appropriate circumstances arise. Thank you.

[The prepared statement of Ms. Raveendran follows:]

STATEMENT OF

Bhavani K. Raveendran
ROMANUCCI & BLANDIN, LLC

BEFORE THE

CONSTITUTION, CIVIL RIGHTS,
AND CIVIL LIBERTIES SUBCOMMITTEE

COMMITTEE ON THE JUDICIARY

U.S. HOUSE OF REPRESENTATIVES

"Examining Civil Rights Litigation Reform Part 2: State and Local Government Employer Liability"

June 9, 2022

Re: Examining Civil Rights Litigation Reform, Part 2: State and Local Government Employer Liability

Dear Chair Cohen, Ranking Member Johnson and Members of the Constitution, Civil Rights, and Civil Liberties Subcommittee:

My name is Bhavani Raveendran, and I represent injured people around the United States as a partner at Romanucci Blandin LLC in Chicago. I concentrate my practice on litigating under the Civil Rights Act, specifically 42 U.S.C. § 1983, representing individuals who have experienced civil rights violations through interactions with police officers, prison officials, other governmental actors, and their municipal employers. I also bring similar claims against municipal actors under state court causes of action, pursuing *respondeat superior* claims against their employers. My specific knowledge in these areas is garnered through thousands of hours of discovery, depositions, research and writing regarding Section 1983, including individual and *Monell* claims.

I received my law degree from American University's Washington College of Law and my undergraduate degree in political science from Case Western Reserve University. During my tenure working in civil rights litigation, I have represented individuals and families in cases regarding the deprivation of a right, severe injury at the hands of state actors, or the loss of a loved one. I have been honored to represent all of my clients and to represent their interests here today, including the families of George Floyd, Botham Jean, and Byron Williams. Thank you for this opportunity to testify to the Subcommittee.

Respondeat superior and *Monell* are two sides of the same coin, providing necessary avenues for litigants who have experienced a violation of their civil rights. That is why today I will ask this Subcommittee to consider legislating to add *respondeat superior* or vicarious liability to this area of litigation, while maintaining the *Monell* doctrine. To understand why this dual approach will prove most effective for litigants and governmental employees, there are several concepts that must first be explained: 1) the tenets of *respondeat superior,* 2) the effect of its current inapplicability to actions under Section 1983 of the Civil Rights Act, 3) the elements and obstacles of *Monell* claims, and 4) the need to protect and incorporate both doctrines.

I. ***Respondeat Superior***

Vicarious liability is a form of indirect liability imposed when one party has a particular relationship with the party committing a tort or injury. In the employment context, this is referred to as *respondeat superior*.

Respondeat superior attaches when an employee, acting within the course and scope of their employment, causes harm to another person, and the employer is held liable for the employee's conduct.

Respondeat superior is considered a fundamental doctrine within the operation of the United States tort system.[1] It serves the purposes of the employee and the injured party. The reasoning is that an employee is acting at the direction of the employer and therefore, the employer should share in legal responsibility for harm caused for its benefit. Further, an employer is generally far more likely to satisfy a judgment than an individual employee and more capable of insuring against liability, including potential actions of employees.[2] Because of this accountability, employers are encouraged to implement safer procedures, enhance training and improve management practices.

A. *Respondeat Superior* and the Use of Force

Respondeat superior often applies where an employee's use of force or deadly force is an expected part of their duties or job description. This is true even where the employee's use of force was unauthorized, as long as the act was not unexpected.[3]

Usually whether or not employment involves or is likely to lead to a use of force is a question of fact and juries are given considerable discretion in finding a connection between employment and the force involved.[4] Uses of force arising from protecting an employer's property, in "excess of zeal in competition" or arising out of a work-related dispute have been considered within an employer's potential liability.[5]Examples of when an employee's position involves or is likely to lead to force, include: an employee tasked with recapturing indebted property; an employee tasked with custody and protection of property; an employee or bouncer hired to restrict the number of visitors in a venue or provide security for a venue; an employee

[1] Restatement (Third) Of Agency § 2.04 (2006).
[2] Restatement (Third) Of Agency § 2.04 (2006).
[3] Restatement (Second) of Agency § 245 ("Use of Force") (1958).
[4] Restatement (Second) of Agency § 245 ("Use of Force") (1958) (Comment a).
[5] Restatement (Second) of Agency § 245 ("Use of Force") (1958) (Comment a).

hired to protect a person; or an employee of a bar or restaurant who stops patrons from entering into a physical altercation.

B. Application by Courts

In determining whether *respondeat superior* applies, courts will consider whether the employment is one that is likely to bring an employee into conflict with others, even if the employee is instructed not to exert force.[6] In some instances, an employer can be responsible for its employee's "use of somewhat more than the appropriate amount of force"[7] or for excessive force where the use of physical force is part of the job.

This important doctrine has demonstrated that it protects individual employees, provides a remedy to subjects injured by employees, and incentivizes the employer to hire the best applicants and train thoroughly. Unfortunately, these important benefits have not been available in Section 1983 claims due to the sidelining of the *respondeat superior* doctrine.

II. ***Monell v. Department of Social Services* and its effect on *respondeat superior.***

Monell v. Department of Social Services, 436 U.S. 658 (1978) is the seminal Supreme Court case providing an avenue to litigate against a municipal entity for a constitutional violation under 42 U.S.C. §1983. *Monell* held that a governmental employer can be sued directly for unconstitutional policies, practices, or customs that were the moving force behind, or caused, a constitutional violation.

A *Monell* claim requires a litigant to demonstrate that his constitutional right has been violated and that an official custom or policy of the municipal entity caused that deprivation. [8] To show a widespread practice or custom under *Monell*, the litigant must prove and find facts "tending to show that the city policymakers were aware of the behavior of officers, or that the activity was so persistent and widespread that city policymakers should have known about the behavior."[9] In practice, this can be a difficult task for the majority of cases where a constitutional deprivation occurs.

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[6] Restatement (Second) of Agency § 245 ("Use of Force") (1958) (Comment a).
[7] Restatement (Second) of Agency § 245 ("Use of Force") (1958) (Comment a).
[8] *Bohannon v. City of Milwaukee*, 998 F. Supp. 2d 736, 743 (E.D. Wis. Feb. 11, 2014).
[9] *Id.*

Monell is, however, an invaluable tool for Section 1983 claims where some of the following scenarios are present:

(1) A municipal official with final authority to create municipal policy without action by the highest municipal legislative body, where the policy itself is unconstitutional. For example, a sheriff issues a policy that officers can discharge a firearm at an individual who is running from an officer, who is only suspected of a nonviolent misdemeanor offense and does not pose a threat of death or great bodily harm.
(2) A single determination of policy by an official with final authority, even where the decision is not a general rule. For example, a sheriff tells his deputies to break into a business and arrest an employee without probable cause.
(3) A municipality has exhibited gross disregard for the possibility that federal rights will be violated by failing to train employees adequately or perform adequate background checks on applicants for municipal employment. For example, a police department has adequate use of force training on paper, but officers testify that they have been trained in the field to shoot merely because they cannot see a person's hands.
(4) A constitutional violation closely related to a municipal policy.[10] For example, a longstanding policy that allows for neck restraints on prone subjects, that officers are using to engage in excessive deadly force.
(5) A constitutional violation that a municipality is aware of that cannot be directly connected to an individual employee's conduct. For example, overwhelming heat in a prison due to building conditions causing unconstitutional harm to inmates.

Despite the complicated language, *Monell* claims have been an unparalleled tool for litigants in certain cases. The primary downside? *Monell* determined that *respondeat superior* did not apply to claims brought under Section 1983. This determination was made despite longstanding common law recognizing *respondeat superior* and its application to municipal corporations for the wrongful acts of police officers.[11]

A. **The use of the *Monell* doctrine instead of *respondeat superior* affects litigants, officers, and governmental employers.**

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[10] Jack M. Beerman, *Municipal Liability for Constitutional Torts*, 48 DPLLR 627, 653-54 (Spring 1999).
[11] *City of Okla. City v. Tuttle*, 471 U.S. 808, 835-36 (1985) (Stevens, J., dissenting).

The absence of *respondeat superior* undermines the purpose of Section 1983 which strives to provide a remedy for the violation of a constitutional right.
Claimants who cannot meet the burdens of *Monell* do not have a realistic remedy where state law or collective bargaining agreements do not provide for indemnification, as most governmental actors do not insure their own work or have sufficient assets to satisfy a judgment.

Finding representation can also be difficult for litigants, as attorneys are less likely to pursue cases against individual officers who are judgment proof. Congress passed legislation, 42 U.S.C. 1988, meant to incentivize representation in civil rights matters by providing for attorneys' fees and costs. This intent is undermined where officers are not indemnified. Failure to pursue claims for these reasons perpetuates lack of accountability and remedial action. Ultimately, this increases the likelihood of repeated constitutional deprivations that may give rise to *Monell* claims. In this way, the absence of vicarious liability fails to hold individual bad actors accountable, provide a meaningful remedy to individuals who suffer deprivations, or eliminate long-term exposure for municipalities.

Monell's stripping of *respondeat superior* has also had an unintended consequence of leaving governmental employees without guaranteed protection for claims arising from constitutional violations connected to their employment.

Another consequence of substituting *Monell* in the place of vicarious liability, is that municipal employers do not have the same incentives as private employers to avoid situations that would submit them to liability. Governmental employers have reduced incentives to hire competent and qualified individuals; to properly train new recruits and existing employees; to properly supervise employees; and to assure that employees are properly trained on the law and policies of the employer.[12] Municipal entities have also avoided liability under *Monell* by issuing policy statements that are consistent with the Constitution but then overlooking the misapplication or failure to train on the policies.

[12] https://www.nlg-npap.org/employer-liability/#:~:text=This%20legal%20doctrine%20is%20called,employers%20to%20take%20care%20to

B. *Monell* creates a barrier to a remedy for litigants, in certain claims.

The elements of *Monell* and its high standards of proof create a significant burden for injured subjects, that does not provide a realistic substitute for *respondeat superior* in many cases.

With any *Monell* claim, the difficulty begins before the initial complaint is even filed. Potential plaintiffs must seek extensive investigative materials through Freedom of Information Act (FOIA) requests, attempting to contact witnesses, and creative guesswork. Specific records that would provide critical details to a *Monell* claim could include personnel records of an involved officer, statistics of prior uses of force within a police department, details of prior similar incidents, and information regarding individuals harmed in a similar manner. Much of the required information or materials could be subject to confidentiality orders, require *in camera* inspection by a judicial officer to be released, require a subpoena to obtain, or could be received in a heavily redacted format, greatly undermining a potential plaintiff's claim at the outset.

Due to this inability to gather information pre-suit, *Monell* claims can be dismissed shortly after filing, due to "inadequate" allegations. To put it simply, plaintiffs do not have enough information at the outset to show a court they could ever prove their case, and may be denied the opportunity to even investigate claims on "proportionality" grounds. Often, courts will indicate to the filing party that *Monell* allegations are vague, conclusory, nonspecific, broad, and do not adequately plead a pattern of conduct or specific policy, as there are very specific pleading standards created by Supreme Court precedent and the Civil Rules.

If parties can get to the discovery process, the burden continues. *Monell* discovery can be significantly more extensive than an individual claim against a single municipal actor, especially when numerous prior incidents or personnel records are required to indicate a pattern in the department or the involved officers. Attorneys representing clients with *Monell* claims can face 1000s of pages and hours of attorney work time collecting, reviewing and processing these materials – limiting the types of firms and counsel that can represent clients in these claims. It is also common for counsel representing the governmental entity defending a *Monell* claim to avoid extensive production of documents or materials through tactics such as protective orders, failing to provide documents that are not specifically requested by name despite their relevance, failing to provide materials until witnesses in

depositions list them, seeking *in camera* inspection of materials before turning them over, or requiring motions to compel to provide the full set of documentation.

Taking depositions in a *Monell* case can be far more difficult than a Section 1983 matter against an individual defendant. Rule 30 of the Federal Rules of Civil Procedure limits potential depositions to 10 per party, which is only sufficient in a small number of Section 1983 claims. Counsel representing an injured party often struggle to prove a repeated practice or custom or training deficiency with this arbitrary limit to depositions in incredibly complex matters. In situations where opposing counsel objects to additional depositions or a court will not allow the depositions requested, plaintiffs will have no additional recourse to gather information that is solely in the control of the defendant municipal entities.

When proving the existence of an unconstitutional custom or policy, plaintiffs are required to show a custom "so persistent and widespread as to practically have the force of law."[13] Plaintiffs also have the additional burden of demonstrating that leaders of the police department were aware of and consciously disregarded the risk that officers would violate civil rights.[14] The burdens imposed by *Monell*'s very language require extensive discovery not always made available or that is in the control of government-controlled witnesses. These demanding discovery issues impose burdens on municipalities, individuals and greatly increase the role of the judiciary in discovery practice.

At the end of discovery, plaintiffs pursuing a *Monell* claim will likely face a motion for summary judgment. Counsel defending a *Monell* claim have the opportunity to argue that the plaintiff cannot demonstrate evidence that the required elements of *Monell* have been met. A plaintiff's ability to successfully respond sometimes hinges, often entirely, on their success at garnering the cooperation of defendants during discovery and/or the rulings of the court to ensure proper access to documentation and deposition testimony.

Even in cases where a court has found there is some evidence of an unconstitutional policy, custom or practice, a court can still find that the policy or custom was not the "moving force" that caused the injury. These issues are further exacerbated by the differing standards applied at every stage of the case in the various Federal Circuits.

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[13] *Connick v. Thompson*, 563 U.S. 51, 61 (2011).

[14] https://www.nlg-npap.org/employer-liability/#:~:text=This%20legal%20doctrine%20is%20called,employers%20to%20take%20care%20to

The numerous obstacles in the path of successfully proving a *Monell* claim become a deterrent to litigants, attorneys, and the public in holding municipal entities accountable for failing to be proactive in policy, discipline, supervision and training. *Monell* is not, therefore, an adequate substitute for *respondeat superior*. Instead, claims persist against individuals, serving only as a deterrent for quality applicants, rather than creating an incentive for municipalities to make internal improvements, reduce claims and protect their employees.

C. **Municipalities and Indemnification**

Currently, federal law does not require municipal entities to indemnify their police officers. Where it is done, it is likely compulsory through state law or collective bargaining agreements. Municipalities often find the resources to pay indemnity costs, much like other employers, through financial reserves or insurance, which is widely available. Unlike legal and medical professionals who carry malpractice insurance, officers are usually not in a position to insure themselves for actions taken on the job.

Indemnification, though common in many cases, is not a guarantee in Section 1983 litigation. There are numerous jurisdictions where state law and collective bargaining do not require indemnifying officers. In those circumstances, individual officer defendants and injured plaintiffs alike are at the mercy of municipalities deciding whether or not to cover their officers. Indemnification can be exceedingly difficult to predict in jurisdictions without laws requiring coverage, where there is no police union or fraternal order, where the municipality does not have the budget or is not adequately insured, where there is a criminal prosecution of the officer, where the municipality indemnifies for legal representation but not for potential judgments, or where a municipality determines indemnification on a case-by-case basis.

These negative consequences become cyclic, as quality employment candidates, particularly in the law enforcement arena, become more difficult to recruit due to the real or perceived personal exposure these candidates face – without indemnification by the municipal employer. *Respondeat superior* would address many of these issues by requiring municipalities to cover their employees where applicable.

III. ***Respondeat superior* and *Monell* serve different but equally essential purposes.**

At this time, *Monell* provides the only mechanism which litigants can use to include a municipal entity in a federal civil rights suit and sometimes the only vehicle to insure a viable remedy to their claims. This increases the overuse of *Monell* claims, due to litigants seeking ways to find coverage, having no access to a more logical vicarious liability doctrine. Conceptually, requiring municipal liability to be seeded entirely in *Monell* is equivalent to requiring anyone injured by a dangerous product to resort to bringing a class action, rather than an individual products liability claim. Nevertheless, due to the absence of *respondent superior* claims in the Section 1983 arena, litigants are forced to attempt to prove policy and custom claims in far too many cases – resulting in wasted judicial, municipal and individual resources.

The availability of the application of *respondeat superior* to Section1983 claims would considerably lessen the number of *Monell* claims, saving resources for all parties. Litigants would be able to choose whether vicarious liability or *Monell* was better suited for the facts of their specific case.

Each case presents the possibility that *Monell* could be an essential claim or that *respondeat superior* would be more applicable. For example, in a matter involving a prison official who sexually assaults a detainee or inmate violating their 8th Amendment rights, *respondeat superior* is unlikely to apply as it is beyond the scope of employment as a prison guard. However, if the prison had previously overlooked known repeated assaults of inmates and failed to train, discipline or terminate its employees *Monell* would be well-suited.

On the other hand, the assessment would differ in a scenario where a well-trained officer without prior complaints for excessive force discharges a firearm at an unarmed subject during a traffic stop when the subject discloses there is a legal firearm in the vehicle. If the officer acted in violation of the policies, customs and training of the police department a *Monell* claim would not be applicable but *respondeat superior* would likely apply as it was within the scope of employment.

Legislation to include *respondeat superior* in civil rights claims would have many other benefits:

- Vicarious liability would apply to all municipal actors, not just police officers, ensuring additional protection for governmental employees.
- Vicarious liability would add an additional layer of protection for officers' privacy by allowing summons for lawsuits to be served on the municipal employer instead of the personal home of an officer and would not publicize officers' personal addresses and finances.

- Vicarious liability would allow for litigants to bring claims against officers as agents of a municipal employer, sometimes avoiding the need to personally name officers as defendants, thus reducing attorney involvement and potential conflicts of interest.
- The availability of *respondeat superior* would likely lessen the number of lawsuits and allow them to resolve faster as municipalities would be immediately involved.
- Officers would potentially feel supported by their employers, decreasing understaffing, underpaying officers, burnout, and stress or anxiety related to litigation.
- Municipalities would have an added incentive to train officers, train on the meaning of policies, and root out problematic practices.
- Municipalities would have added incentive to terminate and not promote problem officers.
- *Respondeat superior* would reduce a municipality's costs because attorneys' fees and costs paid out after a plaintiff's verdict are more onerous with a *Monell* claim, as it requires more attorney hours and expert fees.
- In jurisdictions where officers are not indemnified, there would be protection for officers and an available remedy to litigants, allowing for civil rights claims to be litigated wherever they occur.

Respondeat superior and *Monell* represent two essential modes of litigation to uphold the purpose of Section 1983, with the benefit of providing a remedy to litigants facing unique circumstances and adding a level of protection to governmental employees enjoyed by employees of the private sector in virtually every context.

Conclusion

In conclusion, the Judiciary Committee and this Honorable subcommittee should consider legislation that would codify *respondeat superior* while preserving *Monell* to be utilized when the appropriate circumstances arise.

Ms. ROSS. Thank you very much.

Our next Witness is Rafael Mangual. He is a senior fellow and Head of Research for Policing and Public Safety Initiative at the Manhattan Institute for Policy Research. He is also a contributing editor for City Journal. He has authored and co-authored a number of Manhattan Institute reports and op-eds on issues ranging from urban crime and jail violence to broader matters of criminal and civil justice reform. In 2020, he was appointed to serve a four-year term as a member of the New York State Advisory Committee of the U.S. Commission on Civil Rights. He testified before this Subcommittee back in March at our hearing on qualified immunity.

Mr. Mangual received his J.D. from DePaul University where he was President of the Federalist Society and Vice President of the Appellate Moot Court Team. He received his B.A. from the City University of New York's Baruch College.

Mr. Mangual, you are recognized for five minutes.

STATEMENT OF RAFAEL MANGUAL

Mr. MANGUAL. Thank you so much and I'd like to once again express my gratitude to the Subcommittee for extending to me the honor and privilege of delivering testimony as part of its continuing examination of civil rights litigation reform. I was also honored to have addressed this body during the first part of its examination back in March of this year, and today as I did then I will focus my remarks specifically on police litigation.

During that hearing, I offered reasons to be skeptical of the idea that qualified immunity essentially functioned as a unpierceable shield against liability for police officers such that officers internalize a sense of impunity that then leads them to misbehave in ways they wouldn't otherwise if they had more financial skin in the game.

To the extent to the proposal to move to a vicarious liability or respondeat superior model reflects similar concerns about the incentive structure undergirding police behavior, I do think it's worth briefly reiterating the three primary reasons why such skepticism is warranted.

First, there exists in use of force situations a documented tendency on the part of officers to default to what researchers call an intuitive as opposed to analytical approach to decision making, mostly because the situations in which such decisions are generally made don't lend themselves to the type of analysis that would be required for an officer to accurately assess his or her risk of personal liability and constitutional tort.

Second, empirical research and other available data show that qualified immunity functions as a bar to recovery at a very small share of cases, like less than four percent, that are filed against police officers.

Third, as things stand now, as was already mentioned, nearly 100 percent of the dollars recovered against police defendants in civil rights lawsuits, approximately 99.98 percent according to one study, are already paid by the taxpayers in their respective jurisdictions pursuant to indemnification practices through either statutory requirements or contractual obligations, and yet despite this reality a recent study found with respect to use of force issues, "un-

equivocal proof that officers are not notified of the facts and holdings of cases that clearly established law for qualified immunity purposes."

The question then is whether and, if so, to what degree and by what mechanisms would shifting to a respondeat superior model in civil rights significantly change police behavior in the aggregate? Seems to me that the answer to that question is far from clear. If, however, the primary concern animating proposals to shift liability for civil rights violations from State and local government bodies themselves is to minimize the risk that plaintiffs whose rights have been violated will go without redress, then this sort of end-run-around qualified immunity makes a bit more sense.

That said, there are issues worthy of consideration. Among them the risk of destabilizing insurance markets in ways that will leave smaller municipalities unable to afford to insure themselves against the risk of excess liability. This is more than just a theoretical concern. In the 1980s the municipal liability insurance market experienced significant destabilization leading some municipalities to completely disband their police departments. There is already evidence documented by the University of Virginia's Professor Kenneth Abraham of more recent insurance market destabilization related to police litigation that really ought to place this risk among the primary considerations of this body as it considers related proposals.

A more moderate approach might be, as I proposed during my testimony in March, to legislatively reestablish the analytical sequence set out in *Saucier* v. *Katz* and restrict municipal liability only to those cases in which a not-yet-established constitutional or other Federal civil right is found to have been violated. This would provide several benefits including the promotion of the development of the law, more quickly shrinking the scope of unestablished rights, maintaining important if limited protections enjoyed by individual officers, minimizing budgetary risks of a broader vicarious liability approach, and ensuring that plaintiffs whose right have been violated are able to recover.

To minimize the risk of destabilizing insurance markets and leading smaller municipalities unable to afford their own insurance policies in the lurch an expansion of municipal liability should be coupled with an effort to optimize the regulatory environment with an eye toward allowing private insurers to operate across State lines to build larger risk pools as well as facilitating the creation and expansion of inter-governmental risk pools.

Any legislation on this front should also build in a significant grace period between passage and the effective date of the legislation to allow for the development of the infrastructure municipalities are going to need to have in place to effectively manage their risk.

Finally, I'd like to also take this opportunity to suggest that perhaps another thing the Subcommittee should consider is whether the oppositional tone of our public debate and Congress' role in contributing to that tone has contributed to the current police recruitment and retention crisis that risks leading to a situation in which individuals are dissuaded from careers in policing leaving departments to choose between and among lower quality candidates who

may actually be more likely to engage in official misconduct due to either malice or ignorance.

An example of this is the well-documented phenomenon of wandering cops, officers who leave one department under a disciplinary cloud and are then hired by another. A recent report by my Manhattan Institute colleague Dorothy Moses Schulz suggests that the recruitment of high-quality officers will play a key role in addressing this phenomenon and the problems that stem from it and recommend a Federal effort to subsidize the improvement of the quality of our nation's police forces through hiring.

With that, I want to, once again, thank the Subcommittee for the opportunity to speak to these important issues of which I hope this statement will contribute to a better understanding. Thank you.

[The prepared statement of Mr. Mangual follows:]

Statement of Rafael A. Mangual (June 9, 2022)

Statement to the U.S. House Committee on the Judiciary Subcommittee on the Constitution, Civil Rights, and Civil Liberties

Hearing on Examining Civil Rights Litigation Reform, Part 2: State and Local Government Employer Liability

Thursday, June 9th, 2022

Washington, DC

Reiterating a More Limited View of the Role of Litigation in Police Behavior, and Proposing a More Modest Approach to Reform

Rafael A. Mangual
Senior Fellow and Head of Research, Policing & Public Safety Initiative Manhattan Institute for Policy Research
52 Vanderbilt Avenue
New York, NY 10017



About the Author

Rafael Mangual is a senior fellow and head of research for the Policing and Public Safety Initiative at the Manhattan Institute for Policy Research** and a contributing editor of City Journal. He is also the author of the forthcoming book *Criminal (In)Justice: What the push for decarceration and depolicing gets wrong and who it hurts most*. Mr. Mangual has authored and coauthored a number of policy papers, and more than one hundred essays and columns on topics ranging from policing and crime to incarceration and jail violence, among others. His work has been featured in a wide array of publications, including the *Wall Street Journal*, *The New York Times*, and *The Washington Post*. Rafael holds a B.A. from the City University of New York's Baruch College and a J.D. from DePaul University in Chicago. He lives in New York City with his wife and their two children.

***The Manhattan Institute for Policy Research does not take institutional positions on federal, state, or local legislation, rules, or regulations. Although my comments draw upon my research and writing about criminal justice issues as an Institute fellow, my statement to the Subcommittee is solely my own, and should not be construed as my employer's.*

Statement of Rafael A. Mangual (June 9, 2022)

Statement

I'd like to once again express my gratitude to the Subcommittee for extending to me the honor and privilege of delivering testimony as part of its continuing examination of civil rights litigation reform. I was also honored to have addressed this body during the first part of its examination back in March of this year;[1] and today, as I did then, I will focus my remarks specifically on police litigation.

During last March's hearing, I offered reasons to be skeptical of the idea that "qualified immunity essentially functions as an unpierceable shield against liability for police officers, such that officers internalize a sense of impunity that in turn leads them to misbehave in ways they otherwise wouldn't if they had more financial skin in the game."[2] To the extent that a proposal to move to a vicarious liability (or, *respondeat superior*) model reflects similar concerns about the incentive structure undergirding police behavior, I think it's worth briefly reiterating the three primary reasons why such skepticism is warranted:

- First, there exists in use-of-force situations a documented tendency on the part of officers to default to what researchers call an "intuitive" (as opposed to an analytical) approach to decision-making largely because the situations in which such decisions are generally made do not lend themselves to the type of analysis required for an officer to accurately assess his or her risk of personal liability in constitutional tort.[3]
- Second, empirical research and other available data show that qualified immunity functions as a bar to recovery in a very small share of cases (likely less than 4%) filed against police officers.[4]
- Third, as things stand now, nearly 100% of the dollars recovered against police defendants in civil rights lawsuits ("approximately 99.98%," according to one study[5]) are ***already*** paid by the taxpayers in their respective jurisdictions pursuant to indemnification practices rooted in statutory requirements or contractual obligations; and, despite this reality, a recent study found (with respect to use of force issues) "unequivocal proof that officers are not notified of the facts and holdings of cases that clearly establish the law for

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[1] *See*, Rafael A. Mangual, *Statement to the U.S. House Committee on the Judiciary Subcommittee on the Constitution, Civil Rights, and Civil Liberties: Understanding the Limited Role of Qualified Immunity in Police Litigation and a More Modest Approach to Reform* (March 31, 2022). I would like to incorporate this statement by reference into the record for this hearing.

[2] *Id.*

[3] *See, e.g.*, Hine, et al., *Exploring Police Use of Force Decision-Making Processes and Impairments Using a Naturalistic Decision-Making Approach*, CRIMINAL JUSTICE AND BEHAVIOR (Aug. 2018); and Joanna C. Schwartz, *Qualified Immunity's Boldest Lie*, UNIV. OF CHICAGO L. REV. (2021) (stating that "there is no reason to believe that officers would analogize or distinguish situations rapidly unfolding before them to the court decisions they once studied.").

[4] *See,* Joanna C. Schwartz, *How Qualified Immunity Fails*, YALE LAW JOURNAL 127, no.1 (October 2017) (finding that "Qualified immunity was the reason for dismissal in just 3.9% of the cases in my data set in which the defense could be raised, and just 3.2% of all cases in my dataset."); *see also,* CAPstat, *NYC Federal Civil Rights Lawsuit Data, 2015 to June 2018*, Legal Aid Society (available at: https://www.capstat.nyc) (showing that just 74 of the database's nearly 2,400 civil rights cases filed against the NYPD in federal court were disposed of in favor of the police defendants).

[5] Joanna C. Schwartz, *Police Indemnification*, NEW YORK UNIVERSITY LAW REVIEW, Vol.89, No.3 (Jun.2014).

> qualified immunity purposes," and are instead "taught the general principles… and then are trained to apply those principles in the widely varying circumstances that come their way."[6]

The question then is whether, and, if so, to what degree and by what mechanisms, would shifting to a *respondeat superior* model in civil rights cases involving police result in changes to police behavior that would significantly change police behavior in the aggregate. It seems to me that the answer is far from clear.

While this testimony assumes a sophisticated understanding of the underlying legal issues, a brief overview may provide some helpful context. As things stand now, municipalities are liable for civil rights violations committed by their employees in very limited circumstances. Under the doctrine articulated by the Supreme Court in *Monell v. Dept. of Social Services*, 436 U.S. 658 (1978), municipalities can be held liable as "persons" for civil rights deprivation claims brought under 42 U.S.C. § 1983 when the violation results from the implementation of an officially adopted policy, statement, ordinance, regulation, custom (including customs that have not received formal approval from the municipality), or other official decisions, including certain failures to train police officers for situations that will inevitably arise during the performance of their official duties. But such liability is limited, and, under current law, may not attach simply because the municipality employs a tortfeasor.

If, however, the primary concern animating proposals to shift liability for civil rights violations from state and local government employees to the governments themselves is to minimize the risk that plaintiffs whose rights have been violated will go without redress, then this sort of end-run around qualified immunity makes a bit more sense. That said, there are issues worthy of consideration. Among them is the risk of destabilizing the insurance market in ways that leave smaller municipalities unable to afford to insure themselves against the risk of excess liability. This is more than just a theoretical concern. In the 1980s, the municipal liability insurance market experienced destabilization, leading some municipalities to completely disband their police departments.[7] And there is already evidence[8] of more recent insurance market destabilization related to police litigation that really ought to place this risk among the primary considerations of this body as it considers related proposals.

A more moderate approach might be to, as I proposed during my testimony in March, legislatively reestablish the analytical sequence set out in *Saucier v. Katz*, 533 U.S. 194 (2001), and restrict municipal liability to only those cases in which a not-yet-established constitutional

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[6] *See*, Schwartz *supra* note 3.

[7] See, e.g., John Rappaport, *How Private Insurers Regulate Public Police*, HARVARD L. REV., Vol. 130 No. 6 at 1555 (April 2017) ("[I]n early 1983…[r]einsurers began to fold… Police liability insurance, for practical purposes, had vanished. Governments panicked. A number of municipalities shut down their police forces entirely rather than operate without insurance.").

[8] *See,* Kenneth S. Abraham, *Police Liability Insurance after Repeal of Qualified Immunity, and Before*, SSRN (January, 28 2021) (predicting "that repeal of qualified immunity under Section 1983 would likely aggravate a market that is already in turmoil," by making "coverage even less available," and leaving municipalities with "less insurance for higher premiums.").

right (or other federal civil right) is found to have been violated. This would provide several benefits, such as:

- Promoting the development of the law by restricting judicial avoidance;
- More quickly shrinking the scope of unestablished rights;
- Maintaining important, if limited, protections enjoyed by individual police officers engaged in incredibly difficult work;
- Minimizing the budgetary risks a broader vicarious liability approach might pose to small municipalities; and
- Ensuring that plaintiffs whose rights have indeed been violated are able to recover.

To minimize the risk of destabilizing insurance markets and leaving smaller municipalities unable to afford their own insurance policies in the lurch, an expansion of municipal liability should be coupled with an effort to optimize the regulatory environment with an eye toward allowing private insurers to operate across state lines in order to build larger risk pools, as well as facilitating the creation and expansion of intergovernmental risk pools. Any legislation on this front should also build in a significant grace period between passage and the effective date of the legislation to allow for the development of the infrastructure municipalities will need to have in place in order to effectively manage their risk.

I'd like to also take this opportunity to suggest that perhaps another thing this Subcommittee should consider is whether the oppositional tone of our public debate (and Congress's role in contributing to that tone) has contributed to the current police recruitment and retention crisis[9] that risks leading to a situation in which individuals are dissuaded from careers in policing, leaving departments to choose among lower-quality candidates who may actually be *more* likely[10] to engage in official misconduct due to either malice or ignorance. An example of this may be the well-documented phenomenon of "wandering cops"—officers who leave one department under a disciplinary cloud and are then hired by another. A recent report by my Manhattan Institute colleague Dorothy Moses Schulz suggests that the recruitment of high-quality officers will play a key role in addressing this phenomenon and recommends a federal effort to subsidize the improvement of the quality of our nation's police forces through hiring.[11] This would likely have the added benefit of helping to address the elevated crime rates plaguing far too many American cities (and their most vulnerable residents) over the last few years. All of this is to say that, to the extent the goal here is to reduce the risk of civil rights violations

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[9] *See,* The Workforce Crisis, and What Police Agencies Are Doing About It, POLICE EXECUTIVE RESEARCH FORUM (September 2019); and Survey on Police Workforce Trends, POLICE EXECUTIVE RESEARCH FORUM (June 11, 2021).

[10] A growing body of research suggests that higher educational attainment is associated with fewer infractions and lower rates of force. *See, e.g.,* See, e.g., Eugene A. Paoline, William Terrill, and Michael T. Rossler, "Higher Education, College Degree Major, and Police Occupational Attitudes," Journal of Criminal Justice Education 26, no. 1 (2015): 49–73; Jason Rydberg and William Terrill, "The Effect of Higher Education on Police Behavior," Police Quarterly 13, no. 1 (March 2010): 91–120; Christopher Chapman, "Use of Force in Minority Communities Is Related to Police Education, Age, Experience, and Ethnicity," Police Practice and Research 13, no. 5 (2012): 421–36.

[11] Dorothy Moses Schulz, Wandering Cops: How States can Keep Rogue Officers from Slipping Through the Cracks, MANHATTAN INSTITUTE FOR POLICY RESEARCH (March 2022).

perpetrated by police officers, a more robust examination of police recruitment and retention trends may very well be in order.

With that, I would like to once again thank the Subcommittee for the opportunity to speak to these important issues, of which I hope this statement will contribute to a better understanding. I look forward to answering any questions raised by these points as best I can.

Thank you.

/s/ Rafael A. Mangual
Senior Fellow and Head of Research, Policing & Public Safety Initiative
Manhattan Institute for Policy Research

Ms. ROSS. Thank you so much for your testimony.

Our final Witness is Payvand Ahdout.

Please tell me if I have mispronounced your name.

She is an Associate Professor of Law at the University of Virginia School of Law. Her research centers on the modern uses of judicial power through the lens of the Federal courts. Focusing on the structures that compose the institutions that are most often before the Federal courts her work incorporates multiple legal disciplines including constitutional law, civil procedure, and criminal law and procedure. Her current projects study the phenomenon of litigating Federal power disputes as well as judicial agenda setting outside of the Federal courts.

Professor Ahdout received her law degree from Columbia Law School where she was the James Kent Scholar and recipient of the Ruth Bader Ginsberg Prize. She received her undergraduate degree in economics and government with highest distinction from the University of Virginia. After graduating from law school, she served as a law clerk for the Honorable Ruth Bader Ginsberg, Associate Justice of the United States Supreme Court, and the Honorable Deborah Ann Livingston of the United States Court of Appeals for the Second Circuit.

Professor Ahdout, you are recognized for five minutes.

STATEMENT OF PAYVAND AHDOUT

Ms. AHDOUT. Thank you for having me today to talk about this critical issue.

Today I want to focus on Congress' authority here and the power that you have to make real change in the realm of sovereign immunity.

Sovereign immunity is the legal principle that sovereign entities cannot be hauled into court without their consent. Sovereign immunity is an immunity from suit, not an immunity from liability. This means that sovereigns generally set the terms for how, to what extent, and in which courts they'll face legal liabilities.

Although State sovereign immunity is grounded in the 11th Amendment, it's different in important respects from Federal sovereign immunity. Importantly, State sovereign immunity is not absolute, and its contours are not entirely within a State's own hands. Congress has the main role in defining its boundaries.

Under section 5 of the 14th Amendment, Congress has the power to authorize Federal courts to enter damages awards against States as a means of enforcing the substantive guarantees of the 14th Amendment.

In an opinion by Chief Justice Rehnquist, the Supreme Court recognized that the 14th Amendment shifted the Federal/State balance that has been carried forward to this day. Not only does section 5 of the 14th Amendment contain an express grant of plenary legislative authority, but it does so in the context of an amendment whose other sections by their own terms embody limitations on State authority. For this reason, Congress may choose to abrogate sovereign—State sovereign immunity to enforce the substantive guarantees of the 14th Amendment.

To successfully do so, a statute must satisfy a two-prong test.

First, the statute must evince clear congressional intent to abrogate State sovereign immunity in the text of the statute. For example, you could provide a right of action for monetary damages against a State.

Second, to have requisite constitutional authority, the statutory provision must be congruent and proportional to the targeted violation. Although the test is not well-defined, we do know that Congress may enact prophylactic legislation that prescribes facially constitutional conduct to prevent and deter unconstitutional conduct.

We also know that courts look to and depend upon evidentiary findings that Congress makes in prescribing unconstitutional conduct. It's important for Congress to document, for example, whether there is a history or pattern of unconstitutional conduct or discrimination. It's important to note that Congress has the latitude to abrogate State sovereign immunity only to remedy rights that are protected by the 14th Amendment. This means that Congress has broader latitude to abrogate State sovereign immunity in the context of race- or gender-based discrimination, for example, than for age-based discrimination.

There's an interesting Federal/State balance in recognizing that section 5 of the 14th Amendment provides authority for abrogation of immunity. Ordinarily States are treated as co-equal sovereigns whose monetary fists are protected, but when States engage in systemic subversion of Federal rights, the Constitution provides mechanisms for Federal supremacy, one form of which is congressional authority to provide cause of action for monetary damages.

I want to now clarify why it is that section 1983 does not by its terms apply to States or Act as an abrogation of State sovereign immunity.

As of now States may not be sued under 1983 for two independent statutory reasons: First, in a case called *Quern* v. *Jordan*, the Supreme Court held that Congress did not clearly manifest an intention to abrogate State sovereign immunity in 1983. The Court cited the limited debate on the point of State sovereign immunity as evidence that Congress didn't intend to abrogate immunity in this context.

Second, the Supreme Court has held that States are not considered persons with 1983 statutory text. In *Will* v. *Michigan Department of State Police*, the Supreme Court reasoned that Congress ordinarily does not use the word "person" to apply to States. What's more, in statutory interpretation, there's a default role that Congress must use unmistakably clear language in the statute where it intends to alter the usual constitutional balance between the States and Federal government.

Together these two decisions show that it is in Congress' hands to determine whether to provide a monetary damages remedy against the States and there is no constitutional barrier to providing such a remedy.

I recommend that you be as specific as possible in any legislation seeking to abrogate State sovereign immunity both in your intent to abrogate immunity and in your reasons for doing so. Be clear in the text of the statute that you're providing a statutory cause of action for monetary damages against the States. I recommend that

you make necessary evidentiary findings of State subversion of Federal rights to fortify your statute during judicial review.

Although 1983 includes a damages remedy for both constitutional and statutory violations of Federal law, it's important to note that your authority to abrogate State sovereign immunity broader with respect to Federal constitutional violations than Federal statutory violations because it's aimed at getting at systemic subversion of Federal rights by States.

Thank you for your time and thank you for having me today.

[The prepared statement of Ms. Ahdout follows:]

Statement of Z. Payvand Ahdout (June 9, 2022)
Statement to the House Judiciary Committee
Subcommittee on the Constitution, Civil Rights, and Civil Liberties

Examining Civil Rights Litigation Reform, Part 2: State and Local Government Employer Liability
Thursday, June 9, 2022

Thank you for having me today to talk about this critical issue. My name is Payvand Ahdout and I am an associate professor of law at the University of Virginia School of Law. My research centers on federal courts and constitutional law, with a focus on the constitutional separation of powers. Prior to joining the faculty at the University of Virginia, I served as Bristow Fellow in the Solicitor General's Office and as a law clerk to Justice Ruth Bader Ginsburg. I am here today to talk about Congress's authority to abrogate state sovereign immunity in the context of civil rights litigation generally and § 1983 litigation.

Today, I will talk about four things. First, I will describe state sovereign immunity and highlight the ways in which it is different from federal sovereign immunity. Second, I will describe Congress's role in prescribing the boundaries of state sovereign immunity. Third, I will discuss what Congress can do in the context of civil rights litigation generally and § 1983 in particular. I will conclude with brief recommendations based on the current state of the law.

I. What is state sovereign immunity?

Sovereign immunity is the legal principle that sovereign entities cannot be hauled into court without their consent. Sovereign immunity is an immunity from *suit*, not an immunity from *liability*. This means that the sovereign generally can set the terms for how, to what extent, and in which courts they will face legal liabilities. For example, the federal government has sovereign immunity over all claims against it, but has chosen to waive that immunity to face tort liability under the Federal Tort Claims Act, which prescribes when, how, in which courts, and for what relief the federal government can be sued for torts.

State sovereign immunity is slightly different. Although it shares some attributes of federal sovereign immunity, there are fundamental differences because the United States recognizes dual sovereignty and federal supremacy. It is not solely within a state's hands to shape the contours of its sovereign immunity. The federal government—and specifically, Congress—has limited power to define the boundaries of state sovereign immunity.

State sovereign immunity is grounded in the Eleventh Amendment. That amendment was passed as a constitutional override of the 1793 Supreme Court decision *Chisolm v. Georgia*, which held that a South Carolina citizen could maintain a suit against the state of Georgia.[1] By its terms,

[1] *Chisolm v. Georgia*, 2 U.S. 419 (1793).

the Eleventh Amendment applies to suits brought only by citizens of another state against a state.[2] But the Eleventh Amendment has been read non-literally almost since its inception to provide broad immunity to the states in a variety of contexts.[3]

II. Congress's role in defining the bounds of state sovereign immunity

Importantly, state sovereign immunity is not absolute, and its contours are not entirely within a states' own hands. Congress has the main role in defining its boundaries. Under Section 5 of the Fourteenth Amendment, "Congress has the power to authorize Federal courts" to enter damages awards against states "as a means of enforcing the substantive guarantees of the Fourteenth Amendment."[4] In an opinion by Chief Justice Rehnquist, the Supreme Court recognized that the Fourteenth Amendment shifted "the federal-state balance [that] has been carried forward."[5] Not only does Section 5 of the Fourteenth Amendment contain an express grant of plenary legislative authority, but it does so in the context of an amendment "whose other sections by their own terms embody limitations on state authority."[6] For this reason, Congress may choose to abrogate state sovereign immunity to enforce the substantive guarantees of the Fourteenth Amendment.[7]

To successfully abrogate state sovereign immunity under Section 5 of the Fourteenth Amendment, a statute must satisfy a two-prong test. First, the statute must evince a clear congressional intent to abrogate state sovereign immunity in the text of the statute.[8] For example, the Supreme Court has found this satisfied by a clearly provided right of action for money damages against a state in the context of the Family Medical Leave Act.[9]

Second, in order to have requisite constitutional authority, the statutory provision must be "congruen[t] and proportional[ ]" to the targeted violation.[10] This test is not well defined. But we do know that Congress may enact "prophylactic legislation that proscribes facially constitutional conduct in order to prevent and deter unconstitutional conduct."[11] We also know that courts look to and depend upon evidentiary findings that Congress makes in proscribing unconstitutional conduct.[12] It is important for Congress to document, for example, whether there is a history or pattern of unconstitutional conduct or discrimination. It is important to note that Congress has latitude to abrogate state sovereign immunity only to remedy rights that are protected by the Fourteenth Amendment. This means that Congress has broader latitude to abrogate state sovereign

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[2] U.S. Const. Amend. XI.
[3] *See, e.g.*, *Hans v. Louisiana*, 134 U.S. 1 (1890) (states have sovereign immunity in suits brought by their own citizens); *Franchise Tax Bd. of Cal. v. Hyatt*, 139 S. Ct. 1485 (2019) (states retain sovereign immunity from private suits in the courts of sister states).
[4] *Fitzpatrick v. Bitzer*, 427 U.S. 445, 448 (1976).
[5] *Id.* at 455.
[6] *Id.* at 456.
[7] This power applies equally to the other Reconstruction Amendments as well.
[8] *See Nev. Dep't of Human Res. v. Hibbs*, 538 U.S. 721, 726 (2003).
[9] *Id.* at 730-32.
[10] *City of Boerne v. Flores*, 521 U.S. 507, 520 (1997).
[11] *Id.* at 526.
[12] *See, e.g.*, *Coleman v. Ct. of App. of Md.*, 566 U.S. 30 (2012).

immunity in the contexts of race-based or gender-based discrimination, for example, than for age-based discrimination.

There is an interesting federal-state balance in recognizing that Section 5 of the Fourteenth Amendment provides authority for abrogation of immunity. Ordinarily, states are treated as coequal sovereigns whose monetary fiscs are protected. But when states engage in systemic subversion of federal rights, the Constitution provides mechanisms for federal supremacy, one form of which is congressional authority to provide a cause of action for monetary damages.

III. Section 1983

I want to now clarify why it is that Section 1983 does not, by its terms, apply to the states or act as an abrogation of state sovereign immunity. As of now, states may not be sued under 42 U.S.C. § 1983 for two independent statutory reasons. First, in *Quern v. Jordan*, the Supreme Court held that Congress did not clearly manifest an intention to abrogate state sovereign immunity in § 1983.[13] The Court cited the limited debate on the point of state sovereign immunity as evidence that Congress did not intend to abrogate immunity in this context.[14]

Second, the Supreme Court has held that states are not considered "persons" within § 1983's statutory text.[15] In *Will v. Michigan Department of State Police*, the Supreme Court reasoned that Congress ordinarily does not use the word "person" to apply to states. What is more, in statutory interpretation, there is a default rule that Congress must use "unmistakably clear language" in the statute where it intends to alter the "usual constitutional balance between the States and the Federal Government."[16]

Together, these two decisions show that it is in Congress's hands to determine whether to provide a monetary damages remedy against the states. There is no constitutional barrier to providing such a remedy.

IV. Recommendations

I recommend that you be as specific as possible in any legislation seeking to abrogate state sovereign immunity, both in your intent to abrogate immunity and in your reasons for doing so. Be clear in the text of the statute that you are providing a statutory cause of action for monetary damages against states. I recommend that you make necessary evidentiary findings of state subversion of federal rights to fortify your statute in judicial review. Although § 1983 includes a damages remedy for both constitutional and statutory violations of federal law, it is important to note that your authority to abrogate state sovereign immunity is broader with respect to federal constitutional violations than federal statutory violations.

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[13] *Quern v. Jordan*, 440 U.S. 332 (1979).
[14] *Id.* at 343 ("§ 1 passed with only limited debate and not one Member of Congress mentioned the Eleventh Amendment or the direct financial consequences to the States of enacting § 1.").
[15] *Will v. Mich. Dep't of State Police*, 491 U.S. 58 (1989).
[16] *Atascadero State Hosp. v. Scanlon*, 472 U.S. 234, 242 (1985).

Ms. ROSS. Thank you very much.

Thank you to all our learned panelists.

We will now proceed under the five-minute rule with questions, and I will begin by recognizing myself for five minutes.

Just like the Ranking Member, I too spent many years as a civil rights attorney litigating under 1983 on a variety of different rights and I am very happy that this hearing is extending beyond issues that deal with law enforcement. Because, as the Ranking Member said, there are many, many violations of people's civil rights and constitutional rights that go well beyond law enforcement and any action that we take should deal with the broad constitutional rights that we all enjoy.

As we know, our Constitution and its amendments exist to guarantee fundamental rights. When those rights are violated by the government, citizens and residents should be able to expect remedies to repair harm they have experienced and receive assurances that the violations they have experienced will not be repeated. Yet, under current law people who have their rights violated by an employee of the State or municipal government have extremely limited paths to obtain remedies.

While *Monell* holds that a local government can be held responsible for providing relief in cases when their employees violate a person's constitutional rights, the Court's subsequent interpretation of this case and 1983 make it extremely difficult for plaintiffs to obtain remedies.

Monell further prevents local governments from being held vicariously liable for rights violations by their employees even though it is common practice for private employers to be vicariously liable for their employees' behavior.

While discussion of government liability for police misconduct is particularly pertinent, there are many cases, as I said, of constitutional rights violations by other types of government actors: Free speech, inappropriate social services, terminations of parental rights, and illegal searches and seizures. Victims of these violations deserve a path to obtain justice and repair the harm done to them by their own government.

Creating accountability for government employers incentivizes them to put in place safety measures, exert care in hiring, and improve training of employees acting as a preventative measure against rights violations.

Any long-term solutions must consider how we can properly hold State and municipal governments accountable for violations that occur under their watch.

My first question is for Ms. Raveendran. Can you tell us about all the procedures and steps that are required to proceed with a *Monell* claim and how it is particularly complex litigation and even hard to get a lawyer to take your case?

Ms. RAVEENDRAN. Thank you for your question, Representative Ross. You hit it on the head. It is very complex at every stage. At the very outset, finding an attorney can be difficult because it takes a firm that has the resources to get multiple experts, have the attorneys available to review documents, take depositions beyond the normal Federal limit of depositions.

At the very outset of the case, you need to get information that's within the hands of the defendants which means that you are FOIAing, sending FOIA requests out to municipalities and officers and trying to get as much information as you can. A lot of that information isn't available without confidentiality orders, protective orders of some kind. It's highly redacted, so it's very difficult to build a claim at the outset.

We talked a bit about discovery process. Now, that's thousands and thousands of pages potentially to prove that there's a pattern and practice you'd have to go through. So, you just really need the numbers in terms of your attorney team.

At the very end of the case you have to choose—you have to prove that the violation was caused by this policy, the moving force behind the policy. That is a very difficult burden to prove for plaintiffs unless the acts have been incredibly egregious and well-known. A lot of that information has to come from deposition testimony that is again, within the control of the municipalities. So, it's very difficult. That's not even to mention trial and having a jury try to understand this very complicated concept.

Ms. ROSS. Thank you very much. Can you tell us whether in these cases generally there is any monetary compensation that comes out or is injunctive relief more common?

Ms. RAVEENDRAN. For *Monell* cases, usually you're looking for injunctive relief, you're looking for policy change, and having a *Monell* claim with a 1983 claim sometimes assists in targeting that. When you look for the monetary relief, it's a lot more closer to the injury, so you're proving the injury. Then on top of that you have to prove the constitutional violation. So, it makes it easier to get injunctive relief.

Ms. ROSS. Thank you very much.

I now recognize the Ranking Member, Mr. Johnson.

Mr. JOHNSON of Louisiana. Thank you, Madam Chair.

This is a really sharp panel of Witnesses. We are grateful for you guys being here.

As we have noted the topic of removing the *Monell* doctrine has most recently come up during conversations surrounding the conduct of law enforcement officers and police reform. Some people suggest that the *Monell* doctrine provides nearly complete liability protection for State and local governments that employed bad actors. Others are concerned that eliminating the *Monell* doctrine would put a major strain on the budgets of small towns and municipalities and would yield a minimal real-world impact.

Let me ask my question of Mr. Mangual. Since the summer of 2020, of course, there have been several legislative proposals that would eliminate the *Monell* doctrine entirely. You touched on this, but let me just ask you directly: Do you agree with the premise that police officers are somehow misbehaving because they don't have any financial skin in the game and that eradicating the *Monell* doctrine would create a noticeable impact on how police act?

Mr. MANGUAL. I do not agree with that characterization of the situation on the ground. As I've mentioned, if you look at 1983 litigation filed against individual officers, those cases are very, very often successful. Qualified immunity functions as an effective bar in less than four percent of cases.

Just look at my city of New York. There's a database lawsuits filed against the NYPD in Federal court maintained by the Legal Aid Society that contains about 2,400 cases. If you filter out those cases by disposition, only 74 were disposed of in favor of the police defendants, which is still about three percent.

So, the idea that it's civil rights litigations that are providing a real financial shield to police officers is wrong, especially because even when officers are successfully sued in their individual capacities, the municipalities are already picking up the tab.

The biggest reason to be skeptical of this, as I mentioned in the front part of my testimony, is that when officers are out in the field, they are making decisions in very rapidly unfolding situations that don't lend themselves to legal analysis. The idea that police officers are faced with a criminal suspect and then are engaging in the sort of analysis to identify what their potential exposure might be is just incongruent with the reality of those situations in which officers are acting based on intuition and training.

Mr. JOHNSON of Louisiana. Thanks for that. You also talked a little bit about the unintended consequences of eliminating *Monell* would have on small localities' budgets, and you talked about this destabilizing of the insurance markets. I think you said that it has led to some small towns already completely disbanding their police departments, which is just shocking. Then we have got this recruitment crisis in law enforcement as well.

Would you comment a little bit more about what a profound effect this would have in this arena?

Mr. MANGUAL. Sure. Sure. So, there's some scholarship that I cite in my written testimony done by Professor John Rappaport that explains how in the 1980s, small municipalities because of destabilization in the insurance market did, in fact, completely disband their police departments.

More recent research by Kenneth Abraham shows that a lot of those patterns of destabilization are starting to appear again over the last few years. Part of that has to do with the way insurance markets are actually reading the tone of our national debate about policing and police reform and the attention that this issue is getting.

At the same time there's been a big proliferation in the availability of cell phone cameras, et cetera, which not only provides different kind of evidence that may be weighed differently by a jury, but also that places a lot of new political pressures on municipalities not to fight cases too hard, which means that the legal exposure might grow.

As that happens most cities, big cities and States are able to self-insure against this kind of expenditure, but smaller towns don't necessarily have that infrastructure in place.

So, a shift to complete municipal liability in all these cases might actually present some real problems for smaller municipalities who won't be able to afford the kind of insurance that's already contracting in terms of its—the scope of its coverage and increasing in terms of its cost.

Mr. JOHNSON of Louisiana. Thank you for that.

Speaking of political pressure, I think that we have to remember that calls to curtail or abolish qualified immunity and the *Monell*

doctrine—they have to be considered in the context of today, and many of our Democrat colleagues have a years-long effort to take funding and resources away from police departments. These calls have even come from some Members of this Subcommittee. So, many large jurisdictions around the country like Seattle have defunded their police departments. In 2020, the city cut its police budget by 17 percent. What are the effects?

Just last week, *Seattle Times* reported the department is no longer investigating new sexual assault cases because the unit in charge of those matters is so depleted. These are real world effects and I think that should cause everybody concern. So, I am grateful for the thoughtful discussion. There is a lot of thoughtful debate that needs to be had about all this.

I am out of time, so I yield back.

Ms. ROSS. So next we are going to recognize Chair Johnson. I don't see Mr. Raskin on the screen. So, Chair Johnson, the floor is yours.

Mr. JOHNSON of Georgia. Thank you, Madam Chair. I might State that we need to move beyond simply having a conversation about police misconduct and instead put forth some concrete standards of accountability to ensure that local, State, and Federal agencies can finally be held accountable under the law for constitutional violations.

If you have a constitutional right that is violated with impunity and there is no accountability for the violation, then that constitutional right is worthless. So, that is what this discussion is about today. We must fight back when the consequences—we must fight back where the consequences can be felt the most, and that is the pockets of those responsible.

So, Ms. Raveendran, the law currently acts as a deterrent to quality suits that could bring about accountability by those who have had their civil rights violated by police officers rather than as a deterrent to the officers and municipalities from engaging in this type of activity and making improvements to reduced claims. Is that correct?

Ms. RAVEENDRAN. Thank you for your question, and yes, it is correct.

Mr. JOHNSON of Georgia. In fact, isn't it true that local police departments are best suited to address deficiencies in training and supervision that often lead to police misconduct rather than the individual officer?

Ms. RAVEENDRAN. Yes, they would be better dealt with by the municipality or the police department itself.

Mr. JOHNSON of Georgia. Current law actually makes police departments less responsible for their officers' actions than for example a big chain store would be for the conduct of its security guards. Isn't that correct?

Ms. RAVEENDRAN. Exactly, yes.

Mr. JOHNSON of Georgia. Ms. Raveendran, wouldn't it then follow that imposing vicarious liability on municipalities could inform better training policies, procedures, and improved practices with government?

Ms. RAVEENDRAN. Yes. Thank you for your question.

Mr. JOHNSON of Georgia. Can you briefly explain to us why it is important to hold State and local governments accountable through respondeat superior?

Ms. RAVEENDRAN. Absolutely. First, it would just equalize what we provide private employees in the United States. Public employees who have the same job responsibilities are not provided that same coverage. In addition, it would help municipalities and police departments have added incentive for training programs, changes to policies, and not just what we have under *Monell*, which is where municipalities are putting constitutional policies and failing to train the officers on the application of those policies. So, I believe that would be very beneficial.

It would also help municipalities have added incentive to terminate officers who have repeatedly violated constitutional rights or had repeated complaints where constitutional violations are a concern.

We also would be able to apply respondeat superior to protect all governmental employees, not just police officers. I think that's a very important point.

So, all those opportunities would be available for municipalities and police departments to make a better change and actually have effective policy reforms.

Mr. JOHNSON of Georgia. Thank you for that response. Is it a fact that many, if not most, police departments and municipalities would obtain insurance to cover their exposure to any lawsuits alleging violation of constitutional rights by its police officers and other government officials?

Ms. RAVEENDRAN. Yes, municipalities and police departments are able to receive insurance. Then you see insurance risk pools where multiple municipalities are covered by the same insurance policy. Then in the bigger cities they make a determination whether they're going to have some amount of umbrella coverage insurance, some insurance, or be self-insured where they're making a city council decision to have reserves put aside. That is not a determinant of how much in taxes that anyone is paying.

Mr. JOHNSON of Georgia. All right. Thank you. I am about to run out of time, so I will yield back.

Mr. COHEN. Thank you, Mr. Johnson.

Mr. Owens, you are recognized.

Mr. OWENS. Thank you. I won't take but a few minutes, then I will give the remainder of my time back to my colleagues.

I kind of entered this debate really kind of trying to understand both sides. I am not a lawyer; I have not been this field, but I will tell you my gut feeling is that this is a continuation of the two-year-long Defund the Police.

Right now, we have lower recruitment, we have lower retention, we have higher crime, we have a demoralization of our police, and what we are going to do is add onto this more lawsuits. I just have a gut feeling that this is not the way we should be going at this point as a nation, recognizing that we cannot continue to attack those who defend our freedoms and our rights. We are going to have bad players in everything we do. I would rue the day that we sue parties because of what individual policymakers are doing.

We look at the individual. If he is making—they are bad players, then let's take advantage of that and go after them. This I have concerns about.

I just want to ask, just really quickly, Mr. Mangual, is there any additional comments you want to add to this conversation about this—I guess the unintended consequences of what we are looking at with this type of legislation?

Mr. MANGUAL. Absolutely. I won't reiterate the potential for unintended consequences with respect to a smaller municipality's ability to find insurance coverage for this, but I do think it's worth just saying that to the extent that the goal here is to reduce the risk of civil rights violations perpetrated by police officers overall, I do think it's important to have a more robust examination of police recruitment and retention trends, in part, because to the extent that what we're going to do is constrain the budgets of municipalities big and small where that's going to have an impact on their ability to attract high-quality recruits to the profession. If that happens, we're actually going to ironically raise the risk of constitutional harms being committed by police officers.

Now, I also think it's really important to just recognize how rare police use of force is. I think the tone of this debate reflects an overestimation of the rate of police use of force. In fact, police use force almost never.

So, there's one study done in 2018, over one million calls for service to three municipal police departments in three different States: One in North Carolina; one in Arizona; and one in Louisiana—out of those million calls for service, 114,000 criminal arrests were affected. In that entire data set, only one fatal police shooting was captured and in more than 99 percent of all those arrests, no physical force was used. In 98 percent of the cases in which force was used, either no or mild injury was sustained by the subject according to medical professional review.

So, I think we have to take a step back, understand that we have almost 700,000 police officers making more than 10 million arrests a year and the rate at which they make mistakes is certainly a problem worthy of public consideration, but it is not a problem as large as has been implied.

Mr. OWENS. Thank you. Thank you so much.

I am going to yield back the remainder of my time to my colleague, Ranking Member.

Mr. COHEN. Thank you, Mr. Owens.

Mr. JOHNSON of Louisiana. He yielded to me; I think.

Mr. COHEN. Oh, I am sorry.

Mr. JOHNSON of Louisiana. That is all right. I think we had a minute left. I will speak quickly. I appreciate my colleague yielding.

For context I think the Democrats' call to defund the police, as I noted, is important. I have three pages. If I had time I would read into the comment—into the record comments from our Chair Jerry Nadler, Representative Karen Bass, Jamaal Bowman, Cori Bush, Alexandria Ocasio-Cortez, Mondaire Jones, Hakeem Jeffries, Pramila Jayapal, Ilhan Omar, Ayanna Pressley, Rashida Tlaib, among others, who have said we need to defund the police.

The question is for Mr. Mangual. If Democrats were successful in this mass defunding police department effort, would that help or hurt in fixing what they see is a problem with the *Monell* doctrine and government employer liability for police actions?

Mr. MANGUAL. Well, I think it would hurt, and again mostly because what you're going to end up with is a lower quality of police officer that's going to be more likely to engage in misconduct either as a result of malice or as a result of ignorance. There's lots of research showing that a more educated police force is going to result in lower rates of force, rates of misconduct.

As we dissuade people from engaging in that profession and the ability of municipalities to use their budgets to attract people to that profession, we're going to worsen outcomes overall.

Mr. JOHNSON of Louisiana. Seems obvious to us. Thanks for your time.

I yield back.

Mr. COHEN. Thank you.

Mr. Owens, you were the only person on this Committee that wore cleats and a helmet, pads. Other than Ms. Demmings, I am the only person that had a badge and a gun. I am not for defunding the police and the Democratic caucus is not for defunding the police. Because a few people in the Democratic caucus might have said something doesn't mean that 90 percent of the caucus and the caucus is for—we are for supporting the police. We put money in the bills that we pass, the relief bills, the rescue bill, to let local governments fund the police. My city and my county put $28 million into funding the police. We recognize that need.

I have supported the COPS Program ever since I have been here, and it was a Democrat who sponsored that and passed the COPS bill. We need more community policing and more officers on the street to interact and to make good contact.

This is not about anything anti-police. This is about justice. This is about when there are problems and when there are torts and when there are victims, that their justice is allowed, that the proper parties are allowed to be—and responsible for it, and that by being responsible they will teach better and instruct the officers to follow the laws better and will have less problems in the future. This is about compensating the victims and encouraging programs that will see to it that torts are not committed.

So, with that, I would like to ask Ms. Raveendran a question.

Despite the burdens and difficulties that you describe in litigating claims under the body of law spawned by *Monell*, in your written testimony you also emphasize the importance of preserving *Monell* because it is still an invaluable tool under certain factual circumstances. Can you explain further why Congress should allow plaintiffs to make respondeat superior claims in addition to the claims currently permitted under *Monell*?

Ms. RAVEENDRAN. Thank you for your question, Chair. Both *Monell* and respondeat superior are important for different types of claims. *Monell* can specifically target claims where a particular officer or governmental employee is not necessarily the reason that there was a violation. It's not an issue with that individual. It is an issue within the entire system.

So, the best example for that was something that I described in my written testimony, and that is a prison that has a building that creates a condition where it's overly hot, which creates an Eighth Amendment violation for the inmates inside. Now, that's no particular officer's fault. No corrections officer has built the building. They are not in charge of the thermostat. They can't change that condition.

In that kind of case, you need to be able to go after the municipality itself so that you can try to make a change there and get some compensation for anyone who may have been injured.

In terms of respondeat superior, that is important because in cases where there is a constitutional violation that can be tied to a particular officer or governmental employee's conduct you should be able to go after that individual directly. Using respondeat superior you can still make it the municipality's issue to deal with, to fix with training, policies, recruitment, and termination of problematic officers.

Mr. COHEN. Thank you, ma'am.

Professor Blum, it is clear from your testimony you believe the Supreme Court in the *Monell* decision got it wrong regarding respondeat superior claims. If Congress were to amend the statute to permit those claims, would it be fair to characterize such legislation as correcting the Court's error in an area of law that Congress has clear constitutional authority to legislate therein?

Ms. BLUM. Yes. Thank you for your question and the answer is absolutely yes. This was the rejection of vicarious liability in *Monell* was an interpretation by the Court of a statute. Congress certainly has the power to tell the Court no, that's not what we meant or to correct the Court's error in that sense. So, yes. The answer is yes.

Mr. COHEN. Thank you very much.

With that, I would just like to use my last minute to make clear what I had said earlier. Police are for protecting the public and protecting the public with law enforcement, but proper law enforcement. Nobody is in favor of more George Floyds or more improper police shootings, but we are in favor of better training, better understanding of different demographics in the community, and more involved police patrols with community policing.

Police also—and I talked to a policeman when I was home. I said what should we do about guns? He said get those AR–15s out. I know those guns. They kill. They would kill us. In Uvalde, one AR–15 held off 19 good guys with guns. We need to protect the police and get rid of AR–15s.

Ms. Garcia, you are recognized.

Ms. GARCIA. Thank you, Mr. Chair. I apologize for being a little tardy, but I had a markup at another hearing. I too just want to say for the record that—with all due respect to the Ranking Member—he read some names. You may have noticed that it wasn't over 20, maybe 15. Our caucus is a little over 200. He did not read 200 names because, in fact, as the Chair said, that is not the position of the Democratic caucus and is not the position of the Democratic Party.

I do not want to get too involved with partisan politics, but when somebody makes that kind of comment, we do have to correct it for the record.

Mr. JOHNSON of Louisiana. Would the gentlelady yield?

Ms. GARCIA. No, I will not. I only have five minutes and they are my time.

Mr. JOHNSON of Louisiana. All right.

Ms. GARCIA. So, I want to thank the Chair for convening this very necessary hearing. Today's hearing explores the contours of State and local government employer liability under section 1983. This hearing is essential as a matter of access to justice.

Access to justice is a fundamental principle of the rule of law. As a judge and a lawyer, former judge, and a lawyer I very, very much understand that. Access to justice has many elements one of which is having adequate remedies for grievances. Justice without a remedy is no justice at all.

Access to justice also implies overcoming systematic barriers: Financial, linguistic, cultural, and timeliness. In the absence of access to justice people are deprived of having their voice heard, exercising their rights, protecting their constitutional rights, or holding their government institutions accountable.

When people are deterred from exercising a protected—protecting their constitutional rights, they are more likely to fall prey to the abuse of power by State and local government officials. Minorities, particularly Latinos, face many of these challenges. In my home State of Texas, we can find many of these examples of State-empowered abuses under the color of law.

For example, Governor Abbott's so-called Operation Lonestar targets Latinos—individuals for prosecution thinking that they may have come across the border illegally. The State-sanctioned persecution of transgender children is another recent example.

Somehow, my colleagues across the aisle seem to be confused that this is about defunding the police. Again, no one is saying that.

I did want to ask Professor Ahdout—we talk about 1983 and we talk about police or other governmental employees. In fact, there are other governmental employees that we are concerned about here. Could you just tell us—give us some examples of people other than police that this would apply to?

Ms. AHDOUT. Of course. Governments have many, many different sorts of employees who do lots of different things who can—you have folks in sometimes school districts. You may have folks who work to distribute funds. For example, Medicaid funds and Medicare funds. Basically, every single government employee who executes the law, who does something to execute the law is someone who has touched by 1983. The category of individuals that we're talking about when we say if there is a systemic subversion of Federal constitutional right, there should be some remedy that addresses that systemic subversion of Federal rights from anti-discrimination claims all the way through law enforcement claims.

Ms. GARCIA. Right. I wanted to ask, Professor—is it Raveendran? You were talking about insurance and self-insurance. You didn't mention bonds. A lot of cities—and I also was a city comptroller in Houston, which oversaw the finances of about a $2.3 million budget

and often we had to float bonds to cover some costs. I know more and more cities are floating bonds to cover the judgments as a result of some of these actions.

Do you see an increase and a further debt burden on municipalities as a result of some of these cases?

Ms. RAVEENDRAN. We've not seen an increase in the cases that we've been involved in. Yes, they're seeing the use of bonds on occasion. Usually there is a budget decision that's made if a city chooses to be self-insured, meaning that they allocate their own resources. It isn't determined based on how many judgments there are. They already have that budget. Usually that budget covers torts of all kinds, not just civil rights violations. It's determined by the city how they want to set aside those amounts. Yes, bonds are being used frequently for judgments on—after a trial.

[Simultaneous speaking.]

Ms. GARCIA. I saw an article, and I will try to get it, Mr. Chair, and provide it for the record. I think it was coming out of a California case, that they are actually now characterized as police brutality bonds because it is the high judgments. Because these are the cases really that are the highest liability for some cities, that they are calling them police brutality bonds because without the bonds the cities would not be able to make and pay those judgments. So, with that, Mr. Chair, I will yield back. I will try to find the article and get it to us.

Mr. COHEN. Thank you very much.

That concludes today's hearing. I want to thank our Witnesses for appearing today.

Without objection, all Members have five legislative days to submit additional written questions or additional materials.

With that, we are done.

[Whereupon, at 10:38 a.m., the Subcommittee was adjourned.]

QUESTIONS AND RESPONSES FOR THE RECORD

Questions for the Record
Submitted by
Chairman Steve Cohen, Subcommittee on the Constitution, Civil Rights, and Civil Liberties

Hearing on "Examining Civil Rights Litigation Reform, Part 2: State and Local Government Employer Liability"
June 9, 2022

Questions for Prof. Karen Blum

1. I have introduced legislation, H.R. 1489, the "Civil Rights Enhancement and Law Enforcement Accountability Improvement Act of 2021" which would amend 42 U.S.C. § 1983 ("Section 1983") to hold the employer of a law enforcement officer vicariously liable for acts or omissions committed by the officer within the scope of their employment. I am aware, however, that plaintiffs routinely file Section 1983 claims against municipal employers alleging constitutional violations committed by other classes of employees. Were Congress to amend Section 1983, should vicarious liability be limited to cases involving law enforcement officers? Why or why not?

   Like Attorney Raveendran, I would support vicarious liability for all public employees, not just police officers. For example, conduct by public school teachers can often result in physical injury to children. There are many cases of sexual assault of students by public school teachers. There are also numerous cases involving prison guards or county jail employees and correctional officers. An isolated case in a single school or jail/prison will not give rise to a *Monell* claim and these are cases where the entity could and should be liable based on vicarious liability under Section 1983.

2. In her testimony, Ms. Bhavani Raveendran suggested that if Congress were to amend Section 1983 to permit vicarious liability claims, state law should determine whether the employee's acts or omissions occurred "within the scope of employment." Do you agree? Why or why not?

   Unlike Attorney Raveendran, I would not limit vicarious liability to unconstitutional acts committed within the scope of employment, as that term is defined under most state laws. I like the proposed Bill 1489 language that states "[f]or purposes of this subsection, a law enforcement officer acting under color of law shall be deemed to be acting within the course and scope of employment (regardless of whether the act of the law enforcement officer was unconstitutional)." Thus, there would be vicarious liability for a police officer or jail guard who sexually assaults a suspect or detainee or a teacher who sexually assaults a student while acting under color of law, even if such conduct is not within the scope of employment as defined by state law.

3. Do you agree with Professor Ahdout's testimony that Congress possesses the authority to abrogate state sovereign immunity to permit Section 1983 lawsuits? Why or why not?

Yes, I totally agree and I would support making the Section 1983 remedy available against States. As noted in footnote 15 of my written testimony, Congress clearly has the power to abrogate Eleventh Amendment immunity pursuant to Section 5 of the Fourteenth Amendment to the extent Congress is providing a remedy for the violation of a constitutional right. The Supreme Court's decision in *Will,* like the Court's decisions in *Monell* and *City of Canton*, is based on statutory interpretation. Congress clearly has the power to define and clarify the remedy provided under Section 1983.

4. If Congress has the authority to permit Section 1983 lawsuits against the States, should Congress do so? Why or why not?

   There is no reason why a city or county should be held vicariously liable for the constitutional torts of employees and states should escape such liability. A citizen whose constitutional rights are violated by a state trooper or state correctional officer or by an employee at a state hospital or institution should have the same remedy as a citizen whose rights are violated by a local government official.

5. In the decades since the Supreme Court decided *Monell v. Department of Social Services of the City of New York*, federal courts have struggled to coherently distinguish between an impermissible "vicarious liability" claim against a local governing body and a *Monell* doctrine claim that a local governing body is liable because its adoption of a policy or custom resulted in the employee's depriving the plaintiff of a constitutional or federal right. Given that local governing bodies can already be held liable under Section 1983 for the decisions of policymakers, is it too much of a stretch to extend that kind of vicarious liability for the acts of non-policymakers?

   One of the methods *Monell* recognizes as a means of establishing government liability already is a form of "vicarious" liability. If a plaintiff demonstrates that a final policymaker has made an unconstitutional decision or engaged in an unconstitutional act that causes injury to the plaintiff, that act or decision is attributed to the entity and liability attaches under Section 1983. The Court has held that who is a "final policymaker" for purposes of Section 1983 is a question of law, to be decided by the judge, and it is a question resolved by looking to *state* law. This inserts another level of complexity, confusion, and inconsistency into questions of liability for civil rights violations. A move to vicarious liability would eliminate this particular source of uncertainty by expanding the principle applicable to unconstitutional acts and decisions of final policymakers to unconstitutional conduct by non-policymakers as well. Vicarious liability would not be dependent upon the vagaries and idiosyncrasies of state law.

6. Should Congress also consider amending Section 1983 to prohibit local governing bodies from asserting that the existence of qualified immunity for their employees in a given case prevents related claims against the local governing body as their employer? Why or why not?

Qualified immunity, while not available to government entities, has been used as a means to allow the entity to ride the coattails of the individual who is afforded the defense based on the holding that the law was not clearly established. At least four Circuits have now held that if an individual defendant prevails on the clearly established prong of the qualified immunity defense, there can be no claim against the entity for failure to train as to a matter that was not clearly unconstitutional. Professor Joanna Schwartz has a forthcoming piece (Backdoor Municipal Immunity) criticizing this trend as both "nonsensical and unjust" and contrary to the Court's holding in *Owen v. City of Independence,* 445 U.S. 622 (1980) that municipalities cannot invoke the qualified immunity defense. If the doctrine of qualified immunity remains, there should be no link to municipal liability and this should be clarified by Congress.

7. What is your response to the concern that permitting vicarious liability claims under Section 1983 will have negative impact on State or local budgets?

I am not an authority on fiscal budgets or insurance matters, but I would simply note, in response to concerns about the impact of vicarious liability on state and local budgets that entities cannot be sued for punitive damages (see fn. 16 of my written testimony) and it may be possible to consider caps on damages in certain kinds of cases. It may also be possible for entities to seek a limited form of indemnification (*e.g.,* not to exceed $25,000) from an officer whose conduct is determined by the entity to be egregious, willful or wanton.

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